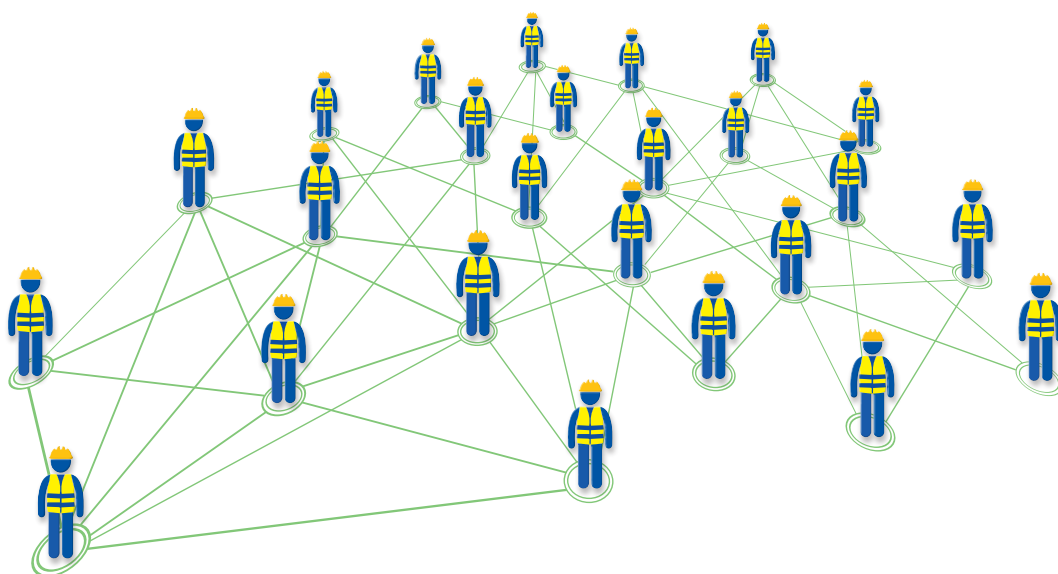


OCCUPATIONAL SAFETY AND HEALTH

INCREASING CAPACITIES AND STRENGTHENING
OF THE ROLE OF THE REGIONAL CSOS FOR
IMPROVEMENT OF THE LABOR CONDITIONS AND
DIALOGUE WITH PUBLIC INSTITUTIONS

Study of Montenegro



OCCUPATIONAL SAFETY AND HEALTH

PROJECT – “INCREASING CAPACITIES AND
STRENGTHENING OF THE ROLE OF THE REGIONAL
CSOS FOR IMPROVEMENT OF THE LABOR CONDITIONS
AND DIALOGUE WITH PUBLIC INSTITUTIONS”

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ABSTRACT

The principle of safety at work is a constitutional principle provided for under Article 64 Paragraphs 3 and 4 of the Constitution of Montenegro. Constitutional right is the right to work, to free choice of profession and employment, to just and humane conditions of work and safety during unemployment. Every employee has the right to salary and the right to limited working hours and paid vacation. Healthy, motivated and satisfied workforce is important for the social and economic well-being of any country. Occupational safety and health contribute to greater employee satisfaction, higher productivity and greater interest in the achievement of organizational goals and interests. Low levels of health and safety at work affect: reduction of motivation, reduction in performance, increase in staff turnover, and increase in the number of injuries at work, increase in the rate of sick leave and in the rate of disability. Occupational accidents, occupational diseases and diseases related to work reduce gross domestic product as well as the well-being of a state and other entities. Any injury in a workplace or any occupational disease acquired by an employee in a workplace represents a major expense for the employers. Tired, discouraged and dissatisfied employees are unproductive, ineffective and uncreative at work, which results in major losses suffered by the employer. The effectiveness of occupational safety and health depends on the degree of involvement of all the factors with the employer, and at all other levels. Risk assessment and appropriate measures to protect health and safety at work allow employers improve the productivity, and increase their profits. An employer, who is aware of the importance of health and safety at work, will invest more than a required minimum, and thus provide an appropriate level of long-term occupational safety and health of its employees. This study provides a comprehensive overview of safety and health at work in Montenegro, situational analysis and recommendations for further improvement in this area.

List of abbreviations

UN – United Nations

WHO – World Health Organization

ILO – International Labour Organization

EU-European Union

EEC – European Economic Community

EU-OSHA-European Agency for Safety and Health at Work

WHO – World Health Organization

NGO-Non governmental organisation

MNE — Montenegro

RCG – Republic Of Montenegro

SFRY – Socialist Federal Republic of Yugoslavia

LOSH – The Law on the Safety and Health at work

MEF – Union of employers of Montenegro

CEM – Chamber of Economy of Montenegro

FTUM – Federation of trade unions of Montenegro

UFTUM – Union of free trade unions of Montenegro

MONSTAT – Statistical Office of Montenegro

ESAW – European statistics for accidents at work

FZOCG – Health insurance fund of Montenegro

SWAM – Safety at Work Association of Montenegro

OSH-Safety and Health at Work

FOREWORD

Technological development and modernization during the 20th and early 21st century, they brought, in addition to a number of positive and negative consequences for the quality of working and living environment. There are risks of potential layoffs, as well as the risks in different ways may compromise safety, mental and physical integrity of the human being and the environment.

Troubleshoot working environment safety and improvement of the quality of the environment, is a dynamic progress that deals with the cause and evaluate performance by reducing negative consequences. Preventive safety measures in the working environment, directly affects and reduces the number of causes of unfortunate events, and the probability of their occurrence.

In the field of safety and health at work is very important to employees in the workplace apply appropriate safety and health measures prescribed by the appropriate risks and hazards. To safety and health measures is adequately applied, it is necessary that the employee knows what are the risks of workplace where work and accordingly respect the procedure and adequately can apply the prescribed safety and health measures.

According to the principles of the UN, who and ILO, safety and health at work, understand the fundamental right of man, because each man (employees) in the world has the right to a healthy and safe work and the working environment which provides socially and economically productive life. Health and safety and healthy working environment are among the most valuable content of each individual, each community and each country.

That worked effectively, a system of safety and health at work involves the interaction of a number of different factors, such as legislation, inspection, insurance, expertise, information, education and further research. Immanent factor of safety and health at work is occupational labour medicine that has its own specificity, but also integrated the function of safety and health at work.

Montenegro its regulation defines the term through "safety and health at work". The constitutional basis for enacting the law in this area is contained in the provisions of article 16, paragraph 1, point 5 of the Constitution of Montenegro, which is prescribed by law, in accordance with the Constitution, and other issues of interest for Montenegro, and in connection with article 64 of the Constitution of Montenegro, which mandates that employees have a right to safety at work. The basic doctrine of safety and health at work implies that the work must not be to disturb the integrity of the person and his health. In other words, the work should not be generating risks of any kind. In reality this is not the case, risks at work, what with outdated and new technology, stations often unsolvable problem, which results in a large number of lighter and more severe injuries and injuries resulting in death.

Given the serious nature of this problem, the EU is in article 6 of the Directive. "The Framework Directive" 89/391/EEC on the introduction of measures to encourage improvements in safety and health at work, committed all of its Member States, and other countries, the recommendation to improve the level of safety and health at work risk assessment for all employees, through determining the sources of hazards and damage and safety measures and health at work, in all their work activities.

The goal of making studies, organization and implementation of safety and health at work in Montenegro, is defining the concept of safety and health at work with State agencies, professional organizations, employers and employees and other structure, analysis of situation in implementing the key provisions of the Law on safety and health at work through the regulation of OSH, risk assessment for jobs, training and education of employees for safe work and a culture of work, existence of comfort working environment, detection of problems in organization and implementation of safety and health at work and the proposal of measures for its optimum organization and implementation, through focusing on specific issues that would define the projects aimed at the improvement of safety and health at work. Meaning of optimal organization and implementation of safety and health at work is to raise awareness, primarily to employers and employees, and the organs of the public administration, to be unconditional and must respect the legislation in this area and there is no room to delay. Also, raise awareness of all relevant institutions and civil society organizations on the need to organize and implement safety and health at work in its entirety, can be a guarantee of success in the safety and health of employees.

The focus of this study will be on educating all stakeholders will have the same goal – to properly understanding the need for creating such conditions working comfort, which will help an employee to without danger to life and health, are pleased to do its job. Of course, for the implementation of these activities and the creation of optimal conditions in the working environment, we need to invest substantial financial resources, but also the will and desire of all stakeholders to give their own contribution, through efforts to edit their own work area environment.

Pleasure has achieved significance only if it feels its own contribution.

1 THE LEGAL FRAMEWORK AND POLICIES

Safety and health at work includes achieving the conditions in which they are taking specific measures and activities aimed at the safety and health of employees and other persons who are entitled to it. Interests of society, of all subjects and each individual is to achieve the highest level of safety and health at work, to be unwanted consequences such as injury at work, occupational diseases and work-related diseases it down to a minimum (acceptable risk) or to achieve working conditions in which the employees have a sense of satisfaction in the performance of their professional tasks. In order to achieve the underlying objectives requires a systematic approach to preventive action and linking all operators who are holders of certain obligations and activities on national level, and beyond, with international institutions in this area. Their duty is to look after the implementation of established policies, measures and standards of working conditions and constant care to change and be harmonized with technological and socioeconomic development, to improve safety and health of employees..

Safety and health at work and their efficiency to a great extent depend on the socio- economic conditions, the degree of economic development and traditions of each country. For their establishment and respect, the most important is the legislative framework which defined subjects and their rights and obligations, relationships, responsibilities, activities and the means to achieve them.

Healthy workplace for all employees in Montenegro, prevention of workplace accidents, improving the conditions in which employees perform their work tasks, as well as improving the health of all participants in the production process, shared the concern of the employer and the employee.

The principle of safety at work, is a constitutional principle in Montenegro under article 64 paragraph 3 and 4 of the Constitution. Constitutional right is the right to work, to free choice of profession and employment, to just and humane conditions of work and to safety during unemployment. Every employee has the right to appropriate the proceeds, as well as the right to limited working hours and paid holidays. Healthy, motivated and satisfied workforce is important for social and economic well-being of each country. Safety and health at work contribute to the greater satisfaction of employees, greater productivity and greater interest in achieving organizational goals and interests. A low level of safety and health at work affects: lower motivation, decreased performance, increased fluctuations, the increase in the number of workplace accidents, increased rates of sick leave and disability rates increase. Accidents and injuries reduce the gross domestic product and reduce the welfare of state and other entities. Any injuries in the work place and every professional disease gain employees in the workplace is a major expense for the employer. Tired, demotivated and unhappy employees are not productive, efficient and creative work, and from that derive the greatest loss for the employer. Efficiency and safety of health at work depends on the degree of commitment of all the factors in the employer, and at all other levels. Risk assessment and take appropriate safety measures, employers can enhance your productivity and thus to increase their profit. Employer who is aware of the importance of safety and health at work, will invest more than the required minimum, and thus provide an appropriate level of long-term care and health at work of their employees.

Safety and health at work contribute to the greater satisfaction of employees, greater productivity and greater interest in achieving organizational goals and interests. Safety and health at work should be an integral part of the life of each employee, part of the general culture and what happens at each employer and in society in general.

The Government of Montenegro in July 2016. adopted a Strategy for the improvement of occupational health and safety in Montenegro 2016. - 2020. with an action plan for its implementation. This strategy acknowledges the legal regulations in this area and is based on the principles of social dialogue at all levels between employers, employees, employee representatives and trade unions, who are obliged to cooperate in the process of determining their rights, duties and responsibilities relating to safety and health at work. The strategy includes all socio-economic spheres, to provide a vision of what he wants to achieve – complete the application of the regulations, changes of consciousness of the importance of the application of safety measures and health at work, socially responsible companies and responsible society in as a whole.

The Montenegrin Parliament was in session from 25 of July 2014., adopted a Law on the safety of the health at work ("Official Gazette of Montenegro", no. 34/14). This law was put out of power the Law on safety at work ("Official Gazette of Republic of Montenegro", no. 79/04 and "Official Gazette of Montenegro", no. 26/10 and 40/11)

1.1 OSH CONDITIONS

In terms of the vision of safety and health at work is reflected in the fact that it is necessary to ensure the development of prevention and health promotion and safety at work for safety and healthy jobs, which creates adequate conditions for work to employees and employers, the growth of productivity, competitiveness and economic development.

The mission is set up and application of quality standards in the safety and health at work, strengthening the quality of work of experts for safety, raise awareness, monitoring system and analysis of data, exchange of good practices, informing and improving knowledge in the field of safety and health at work.

Basis objectives that will realize the activities of the Ministry of Labour and Social Welfare as a policy maker of safety and health at work in partnership with the other participants in this area are:

- strengthening the policy that deals with the safety and health at work, including the integration and safety and health at work of employees in other sectoral policies and finding new synergies;
- reduce the number of workplace accidents in relation to the workplace and the environment;
- reducing the number of occupational diseases and work-related diseases;
- reduce the number of workplace accidents that are causally related to the
- fulfillment of work obligations;
- improving the health status of employees (prevention);
- reduction of economic losses due to injuries at work, occupational diseases and work-related diseases (sick leave, early retirement and disability)..

These goals can be achieved through joint action of the Ministry of Labour and Social Welfare and of all entities responsible for the safety and the health and safety of employees in order to:

- prevent, or reduce the numerous and different risks at work and related to work;
- prevent risks arising from new technologies;
- raising the level of safety and health at work in all activities, and in particular
- towards actors responsible for safety and health at work of which there is a
- presumption that the legislation does not contain provisions on the subject;
- provide safety of special categories (employed women during pregnancy, persons under 18 years of age, and persons with disabilities).

Implementation of the relevant activities it is possible to:

- establish the composition of the collection and processing of data, their analysis, research and planning and undertaking of appropriate activities;
- to achieve the basic strategic goal of "safe and healthy workplaces";
- continuous improvement of all areas of safety and health at work

1.2 The Law on OSH ("Official Gazette of Montenegro", no. 34/14 from the 08.08.2014.)

In Montenegro, the enactment of the Law on OSH in 2014, which was passed in order to respect the requirements arising from international acts, the negotiation process in the EU accession of Montenegro and set goals related to harmonisation of regulations for safety and health at work with EU legislation, administered the Law on safety at work ("Official Gazette of Republic of Montenegro", no. 79/04 and "Official Gazette of Montenegro", no. 26/10 and 40/11). With the opening of the negotiating chapter 19 – social policy and employment, created the conditions to have the existing regulations in the field of occupational safety fully into line with the requirements arising from the ILO documents and EU, and the sense of orientation our States for membership in the EU. Accordingly, the Law on safety and health at work that is fully compliant with the Council of Europe's framework directive 89/391/EEC of 12 June 1989 on the introduction of measures, to encourage improvements in safety and health of employees

at work (the GPL No. 183 of 29. 06.1989., p. 1), amended by Regulation (EC) No 1137/2008 of the European Parliament and of the Council of 22. in October of 2008. about how some acts using the procedure given in Article 251 Contracts, decisions of the Council in 1999/468/ES concerning the regulatory process with a review of the regulatory process – customization overview – part one (the GPL No. 31 of 21. 11.2008. p. 1), which is like a newspaper and health component has been added.

Safety and health at work is ensured and implemented using modern technological, organizational, medical, social and other measures and means of protection in accordance with the present Law, other regulations, ratified and published international treaties. The law, according to chapters, determines the General conditions and measures of safety; the rights, obligations and responsibilities of the employers; rights, obligations and liability of employees; organizing activities and safety of health at work by an employer; records, reporting and collaboration; supervision and penalty provisions.

The provisions of this Law shall apply to all persons employed in the territory of Montenegro with legal entities and entrepreneurs in all sectors of activity, state authorities, government bodies, public administration and local self-government units, posted workers if the regulations of the receiving State provide less favourable safety measures and health at work than those provided for in this Law, unless otherwise regulated by a special law.

Safety and health at work involves providing working conditions not posing a risk of injury at work, occupational diseases and work-related diseases, while also creating conditions for full physical and psychological safety of employees.

In a separate section of the law which regulates the rights, obligations and responsibilities of employers in relation to safety and health at work, the employer has an obligation to secure the safety of health at work of their employees in all aspects related to work, and especially safety and health and safety of women employees during pregnancy, persons under 18 years of age, and persons with disabilities. This means that the employer must take safety measures (all steps, preventive and other measures that are being taken or planned at all levels of work at an employer, in order to prevent or reduce the risks to life and health of employees), including safety against injury at work and occupational diseases, work-related diseases, training and informing personnel check; employees; cooperation with employee, representative of employees and unions; training of representatives of employees. The employer is obliged to make an act of risk assessment for all jobs, found a way and measures to eliminate risks and ensure their implementation. In the risk assessment act employer specifies jobs with increased risk, health requirements for a specific work that they need to meet the employees at a work process or for the use of certain resources to work on the basis of professional assessments authorized institutions for health care employees. Employer work organization and working process provide safety measures in accordance with the law; given to employees on the use of funds for the operation and that only if it possesses a professional report, or a report of the examination and tests, scoring to secure them the prescribed safety measures; purchased and issued on the use of funds and assets personal protective equipment necessary for the position to which the employee is assigned, if only for them with the prescribed documentation in the official language and languages in official use, in which the the manufacturer or supplier of listed safety - all technical data relevant to the assessment of risks at work and to secure all the safety measures that are specific documentation in accordance with the regulations on the safety of health and safety; When employment empowers the employee to safe operation, and, in the case of the deployment of the employee to another position, and the introduction of new technologies, the introduction of new or replacement of assets, changes in work processes and the deployment of the employee's work after absence that lasted for more than a year.

The employer is obliged to implement measures that are based on the following principles:

- avoiding risks;
- assessing risks;
- elimination of the risk at the source;
- customize your work and workplace employees, especially in terms of construction employment, choice of work, choice of working and production methods, with particular emphasis on avoiding monotonous work and work at a particular speed and already reducing their effects on health;
- adapting to technical progress;

- replacement of dangerous harmless or less dangerous circumstances;
- the development of comprehensive policy and health at work, which includes
- technology, organisation of work, working conditions, interpersonal relations
- and working environment factors;
- give the benefit of the collective safety measures in relation to individual safety measures;
- giving appropriate instructions and information to employees..

Employer, according to the nature of activity, number of employees, the organization and mode of operation, rights, obligations and responsibilities of the safety and health at work being edited by an general act or a labour contract concluded with an employee.

In accordance with international documents in this field, Montenegrin legislation provides for the employer's duty to co-operate with the employees, representative of employees and the trade union, in particular in connection with:

- any measure which may substantially affect the safety and health at work;
- by setting the professional persons for the safety and health and safety, by specifying the entities for the implementation of measures, first aid, fire
- prevention and evacuation of employees and activities in connection with safety and health at work;
- information about risk assessment and safety measures, including those risks faced by groups of employees exposed to special risks;
- decisions on safety measures that must be taken, and if necessary the means and personal protective equipment used;
- records and reports of injuries at work which had the effect of the employee's absence from work for more than three working days;
- reports of injuries at work of their employees;
- measures and actions of the inspection and other authorities responsible for safety and health at work;
- engagement of the legal entity or contractor for carrying out professional activities;
- planning and organizing training and checking the qualifications of safety and health at work.

Employer it's organization of work and work process provides safety measures, and is required and to ensure that access to the workplace in the middle on which threatens serious risk of injury or health damage have only those persons who are trained in safe work in the workplace and that they received special instruction, and equipped with the appropriate means and equipment for personal safety and safety, as well as to any person on any basis is in the room, round the employer or the site warn about dangerous places or on the harmful effects to health which arise in the the technological process, as well as on safety measures which must be applied.

Employer, employee, representative of employees and trade union, according to the law, co-operate in the process of establishing rights, obligations and responsibilities relating to safety and health at work, the employer is obliged to provide employees and trade union representative to your remarks in connection with safety and health at work provide the competent inspector.

The legislator has made complete harmonization of legislation with international regulations in relation to the social dialogue and cooperation between employers and employees on the other, in order to improve the safety and provides safe workplaces.

Jobs with special conditions of work

Jobs with special conditions of work are workplaces that can be arranged and perform these jobs only employees, in addition to the General requirements for establishing employment relationship, fulfilling special requirements in terms of gender, age, school qualifications, professional qualifications, health and mental ability. The employer is unable to arrange for the employee at the work place with special conditions of work, if you do not establish that the employee meets the specific requirements that are prescribed. The employer is obliged to provide access to

the workplace in the middle on which threatens serious and/or specific danger of harm or health damage have only those persons who are qualified for safe work at the workplace, which are received special instructions for working in such a place and who are equipped with the appropriate means and equipment for personal safety and safety, as well as to any person upon any basis is in the room, round the employer or the site warn of dangerous places or on damage to health which arise in the technological process, the safety measures which must be applied and to focus on the safe zone for movement. The employer is obliged to in places of work, as well as the means for work set labels, warnings, in the official language and languages in official use and characters and safety of health at work.

Safety measures

Safety measures are planned and provide in all processes of working with the employer, to prevent or reduce the risks to life and health of employees, in the proceedings::

- design, construction, use and maintenance of the facilities intended for the working and auxiliary facilities, as well as facilities intended for operation in the open air, in order to ensure the safe operation of the process of work;
- design, construction, use and maintenance of technological processes of working with all of its means of operation, in order to ensure the safe operation of employees and aligning the chemical, physical and biological damage, microclimate and lighting conditions in the workplace and in operating and auxiliary premises with prescribed measures and standards for an industry that is performed on these jobs and in those workplaces;
- design, build, use, and maintenance of assets, structures and facilities for collective safety and health at work, supporting structures and facilities and other assets that are used in the process of working or who are in any way associated with the process work, so that in the course of their use prevents damage to health is that clear? or employees;
- production, packaging, transport, storage, use and destruction of dangerous substances in the manner and under the regulations and Regulation that prevent injuries or damage to the health of employees;
- design, manufacture and use of personal protective equipment at work, use of which eliminates the risks or dangers that could not be eliminated by appropriate safety and health at work measures;
- education and training in the field of safety and health at work.

The measures shall be prescribed through by-laws in the field of safety and health at work and through other regulations.

By-laws shall be prescribed by the state authority in charge of labour.

Medical examination of employees

The employer is obliged to provide medical examination of employees who are deployed on jobs with special conditions of work, or to increased risk and in the cases of re-engagement of the employee who took a day off work on the workplace for more than a year ago. If you are in the process of medical examination determines that an employee does not meet the specific health requirements for workplaces with special conditions of work, or to increased risk, the employer is obliged to arrange it to another working place corresponds to his medical abilities, in accordance with the Act on job classification.

Fire safety, evacuation and rescue and serious or imminent danger

In a separate chapter are prescribed and other obligations of the employer. He is obliged to provide fire safety, evacuation and rescue. The employer is obliged to either facility, taking into account the technological process, the materials that are used when working, storing the material and size of the object, take all measures to avoid the fire, and if it still comes to the extent to safety and health of employees and other persons present, reduced to a minimum.

Depending on the nature of the process of labor, employer and undertake measure specifies employees for first aid, fire safety and evacuation of employees depending on the type of work and activities, as well as the number of employees and the presence of other persons ; provides a link to other services, in particular as regards first

aid, emergency medical services, rescue and fire safety. The employer is obliged to notify all employees who are exposed to a serious or imminent danger, or it could be the type of risks and safety measures. The employer must, when serious, imminent and unavoidable danger, measures and instructions, enable employees stop work and refer to the safe place and cannot be from employees that it requires to continue to work in a situation where there is a serious and the immediate danger, except in the case of saving human lives.

Informing employees

Employer's obligation to inform employees of the rights and obligations relating to the safety of health at work, thus making it accessible:

- risk assessment and safety measures, including those risks faced by groups of employees exposed to special risks;
- decisions on safety measures that must be taken, and if necessary the means and equipment of personal safety equipment to be used;
- records and reports of injuries at work which had the effect of the employee's absence from work for more than three working days;
- reports of injuries at work of their employees;
- data derived from measurements and shop inspection and other
- organs responsible for safety and health at work.

The employer is obliged to inform in writing the employees and their representatives about any kind of risks on all positions, safety measures and how to organize and provide the first aid, fire safety, evacuation procedures and persons are responsible for providing of these measures.

The employer must be on jobs and resources for work highlight special warnings and signs in relation to safety and health at work.

Representative of employees

To facilitate cooperation and dialogue between employer and employees, in addition to immediate cooperation, legislation introduced for the safety of employees' representatives and safety and health at work. Employees, or the representative of employees are not allowed to be brought in less favourable position for carrying out activities in the field of safety and health at work. The employer is obliged to provide the appropriate representative of the employees absence from work, for a fee, and to provide all necessary resources for conducting about safety and health at work.

Training for safe work

The employer is obliged to carry out training for safe operation of the employee to:

- employment;
- deployment to another position;
- the introduction of new technologies, the introduction of new or replacement of assets;
- changes in work process and redeployment of work after absence that lasted for more than a year.

Training is carried out according to the program of training during work time, and training costs borne by the employer. Training of employees for safe work employer carries out theoretical and practical, and checks are performed at the place of work. The employer is liable to the employee, in the course of training for safe work, meet with all kinds of danger in which it distributes and on specific actions that are needed in order to troubleshoot danger to life and limb, or damage to health.

Perform professional jobs

Employer organises and carries out professional tasks depending on the Organization, the nature and scope of the work process, the number of employees who participate in the process of operation, the number of work shifts, the estimated risk of a number of separate units and location. For the purpose of carrying out activities in the field of safety and health at work can:

- determine the expert person;
- organizes expert service for safety and health at work;
- engage a legal entity or entrepreneur who has authorization to carry out professional activities (authorized organization).

Administrative service cannot perform professional jobs for other employers, and the employer is responsible for the safety and the health and safety of employees regardless of the manner of organising and carrying out these operations.

Professional entities are directly responsible to the employer and are not allowed to be brought into disadvantage because of their activities related to the safety of health at work. Professional, prior to deployment on these jobs, is due to pass the professional examination for persons who are engaged in business and safety of health at work.

Competences of the professional persons, or professional services are:

- advising employer in planning, choosing and maintaining assets and funds and equipment for personal safety and safety;
- advising employer by equipping and edits the workplace, taking into account the working environment and conditions;
- participation in drafting technical bases for the assessment of risks;
- previous studies and organizes periodic conditions working environment (chemical, physical and biological substances, microclimate and illuminance level);
- organizes periodic examinations and testing of work equipment, electrical and other installations;
- proposing measures to improve working conditions, especially on jobs with special conditions of work, or to increased risks;
- for all jobs with employer monitoring of the application of safety measures and maintenance of the assets and funds and equipment for personal safety and safety in working order;
- providing instructions for the safe operation and control of their application;
- monitoring the situation in relation to injuries at work and occupational diseases,
- as well as diseases related to work, participate in determining their causes and
- preparing a report with proposals for measures of the employer;
- preparation of and participation in training of employees for safe work;
- proposing safety measures in the workplace or the use of the funds for the work, in case when the immediate danger to the life or health of the employee,
- employer and employee representatives shall immediately inform;
- cooperation and coordination on all matters in the field of safety and health at work with an authorized institution for health care employees;
- keeping and caring for records of safety and health at work.

Professional activities can perform a legal entity and an entrepreneur, which meets the requirements in terms of staff, organization, technical and other conditions prescribed by the Ministry of Labour and Social Welfare which applies with the necessary documentation. The solution is issued for a period of three years and can be renewed. Ministry of Labour and Social Welfare stripping authority to perform professional jobs and erased from the register of the authorized organization if stop meets the prescribed conditions for carrying out professional activities or fails to perform professional tasks for that is issued to the authority.

Authorized organizations perform the following tasks:

- preparation of the risk assessment act with the proposed measures for their elimination;
- periodic inspection and testing of work equipment, electrical and other installations and facilities and equipment for personal safety;
- examination of the working conditions (chemical, physical and biological substances, lighting and microclimate);
- audit (assessment) of technical documentation in terms of applicability of safety and health at work measures, technical regulations and standards, establishing provision of protection to employees in facilities for which technical
- documentation was developed, for the work processes to be performed by them;
- training of employees and capability test for employees.

Rights, obligations and liability of employees

A special chapter of the law establishes the rights, liabilities and responsibilities of employees. The right and duty of each employee to be before he meets with safety measures in the work place to which it is distributed, as well as to enable for their implementation; if the employer gives suggestions, objections and notifications in connection with safety and health at work; as well as to perform medical examination that matches at risk for safety and health at work, to which it refers the employer.

An employee has the right to refuse to work, if:

- not previously familiarized with the dangers or hazards and risks at work, or if the employer did not provide the prescribed medical examination;
- there is an immediate threat to life and health because the prescribed safety and health at work measures have not been applied, for as long as those measures are not secured;
- the safety and health at work measures have not been provided on the work equipment, and so it poses immediate threat to life and health.

When employee refuses to work he shall address the employer in writing in order for the employer to take measures that in the opinion of the employee have not been implemented. In the event the employee refuses to work and the employer considers the employee's request to be ungrounded, the employer shall inform the Labour Inspectorate. In the event of serious and imminent threat to life and health, employee may take appropriate measures in accordance with his knowledge and technical means at his disposal, and in case of unavoidable danger he has the right to leave the dangerous workplace, work processes or work environment.

The employee is required to work in accordance with education and instructions received from the employer implements measures to protect and take care of your health and safety and on the work of other employees that are affected by your work or procedures, as well as to the dedicated funding for work, hazardous materials, assets personal protective equipment and protective devices, cooperate with the employer and professional face; and that in accordance with your knowledge immediately notify the employer, written or verbally, or by representatives of employees, of irregularities, defects, harms, hazards or other appearance which would in the workplace could jeopardise his or the safety and health of other employees.

Employees cannot start and perform work under the influence of funding addiction (alcohol, drugs, etc.) and shall to submit himself to make sure it's under the influence of these funds, in the manner and in accordance with the procedure established by an act of the employer.

Law enforcement

By-laws relating to safety and health at work brings the Minister of Labour and social welfare.

The inspection supervision of the implementation of this law, of regulations adopted thereunder, and technical and other measures relating to the safety and health at work shall be performed by the Labour Inspection, through inspectors working in the field of safety and health at work, unless the law stipulates that supervision in the implementation of these regulations in certain activities shall be carried out by other bodies. In the inspection the inspector in the field of safety and health at work, in addition to the duties and powers defined by law, shall have the obligation and authority to conduct the investigation of serious, collective and fatal injuries at work.

1.3 Regulations that are directly related to the basic aspects of osh issued by the competent ministry

1.3.1 The safety and health at work regulation

In the process of accession of Montenegro to the European Union it is necessary to work on approximation of Laws on safety and health at work and subordinate legislation with EU directives. In addition to transposing EU directives into national law will prepare the and guidelines for their consistent application. Will continue compliance with

ILO conventions. bearing in mind the importance of collective bargaining will launch initiatives to encourage social partners to questions of safety and health at work regulate through a system of collective bargaining, how special collective agreements and collective agreements at the level of the employer.

Legislation regulating safety and health at work are:

1. The Law on safety and health at work („Official Gazette of Montenegro“, no.34/14);
2. The Labor law („Official Gazette of Montenegro“, no. 49/08, 26/09 and 59/11);
3. The Law on health care („Official Gazette of Montenegro“, no. 03/16);
4. The Law on health insurance („Official Gazette of Montenegro“, no. 06/16);
5. The Law on pension and disability insurance (Official Gazette of RM "No. 54/03, 39/04, 61/04, 79/04, 81/04, 29/05, 14/07 and 47/07 and " Official Gazette of Montenegro", no. 12/07, 13/07 , 79/08 14/10, 73/10 78/10, 34/11, 39/11, 40/11, 66/12, 36/13, 38/13, 61/13, 06/14, 60/14, 10/15 and 44/15);
6. The Law on labour inspection („Official Gazette of Montenegro“, no. 79/08 and 40/11);
7. The Law on the army of Montenegro (Official Gazette of RM "no. 88/09, 75/10, 40/11 and 32/14);
8. Solution of Montenegrin standards and related documents ("Official Gazette of Montenegro", no. 58/15);
9. The Law on the safety of maritime navigation („Official Gazette of Montenegro“, no. 62/13, 6/14 and 47/15);
10. The Law on the safety of ionizing radiation and radiation safety ("Official Gazette of Montenegro", no. 56/09, 58/09, 40/11);
11. The Law on mining („Official Gazette of Montenegro“, no. 65/08, 74/10 and 40/11);
12. The Law on Social council („Official Gazette of Montenegro“, no. 16/07, 20/11 and 61/13).

By-laws

1. Regulation on measures against the risk of occupational exposure to biological substances ("Official Gazette of Montenegro", no. 62/17)
2. Regulation on the type of mode volume and deadlines for performing the medical examination of employees in workplaces with special conditions of work or with increased risk ("Official Gazette of Montenegro", no. 43/17)
3. Regulation on safety measures against the risks of occupational exposure to explosive atmosphere ("Official Gazette of Montenegro", no. 27/17)
4. Regulation on measures against the risk of occupational exposure to asbestos ("Official Gazette of Montenegro", no. 14/17)
5. Regulation and health and safety from the risks of occupational exposure to chemical substances ("Official Gazette of Montenegro", no. 81/16)
6. Regulation and health and safety against the risk of occupational exposure to carcinogenic and mutagen substances ("Official Gazette of Montenegro", no. 60/16)
7. Regulation on closer terms to fulfill a legal entity to perform health care employees ("Official Gazette of Montenegro", no. 60/16)
8. Regulation on jobs with special conditions of work and terms to meet the employees to work in those jobs ("Official Gazette of Montenegro" no. 70/16)
9. Regulation on safety measures and occupational health from the risks of occupational exposure to noise ("Official Gazette of Montenegro", no. 37/16)

10. Regulation on safety measures and occupational health from the risk of exposure to vibration ("Official Gazette of Montenegro", no. 24/16)
11. Regulation on safety measures on using of display screen equipment ("Official Gazette of Montenegro", no. 16/16)
12. Regulation on manner of registration and deletion from the register of the authorized organization for safety and health at work (Official Gazette of RM", no.70/15)
13. Regulation on safety measures on workplaces ("Official Gazette of Montenegro", no. 40/15)
14. Regulation on the use of personal protective equipment ("Official Gazette of Montenegro", no. 40/15)
15. Regulation on safety measures on manual handling of load („Official Gazette of Montenegro“, no. 29/15)
16. Regulation on safety measures on using of work equipment („Official Gazette of Montenegro“, no. 27/15)
17. Regulation on signs for the safety and health at work („Official Gazette of Montenegro“, no. 24/15)
18. Regulation on the method and procedure of risk assessment in the workplace ("Official Gazette of RM", no. 43/07)
19. Regulation on the method and procedures for training employees in safe work ("Official Gazette of RM", no. 57/06)
20. The regulations on the procedure and deadlines for performing periodic inspection and testing of work equipment, personal protective equipment and working environment conditions ("Official Gazette of RM", no. 71/05)
21. Regulation on taking the professional exam for persons who are engaged in safety and health at work ("Official Gazette of RM", no. 67/05)
22. Regulation on the conditions which must have the legal or natural person to perform professional activities in occupational safety and health at work on the procedure for determining compliance with these conditions ("Official Gazette of RM", no. 67/05)
23. Regulation on taking of records in the field of safety at work ("Official Gazette of RM", no. 67/05)
24. Regulation on matters of safety which should regulate the employment contract ("Official Gazette of RM", no. 67/05)
25. Regulation on the safety at work plan for construction sites ("Official Gazette of RM", no. 4/99)
26. Regulation on the contents and manner of issuing of injury at work report ("Official Gazette of RM", no. 18/93)
27. Regulation on measures and norms of occupational noise in workplaces ("Official Gazette of SFRY", no. 21/92)
28. Regulation on occupational safety in loading and unloading of cargo ("Official Gazette of SRM", no. 13/88)
29. Regulation on special safety measures and safety in railways ("Official Gazette of SRM ", no. 11/88)
30. Regulation on special safety measures and safety in mechanical processing and processing of wood and similar materials ("Official Gazette of SRM", no. 9/88)
31. Regulation on special safety measures at work in black metallurgy ("Official Gazette of SRM ", no. 16/87)
32. Regulation on special safety measures for works in the production and processing of non-ferrous metals ("Official Gazette of SRM", no. 31/86)
33. Regulation on special safety measures in forestry ("Official Gazette of SRM", no. 16/86)
34. Regulation on safety precautions against the dangers of electric current in workplaces and on work sites ("Official Gazette of SRM", no. 6/86 and 16/86)
35. Regulation on provision of funds, meals and transportation of workers from place of accommodation to the place of work and back ("Official Gazette of SRM", no. 5/86)
36. Regulations about equipment and procedures for the provision of first aid and organizing rescue services in case of accidents at work ("Official Gazette of the SFRY", no. 21/71)
37. Regulation on special safety measures and safety in the processing and processing of leather, fur and debris from the skin ("Official Gazette of the SFRY", no. 17/70)
38. Regulation on special safety measures at work in preparing the explosives and gunpowder and manipulation of explosives and gunpowder (Official Gazette of SFRY, no. 55/69)
39. Regulation on special safety measures in the construction industry ("Official Gazette of the SFRY, no. 42/68 and 45/68), except for article 3
40. Regulation on special safety measures at work in agriculture ("Official Gazette of SFRY", no. 34/68)
41. Order prohibiting the use of motor gasoline for degreasing, washing and cleaning of metal parts of objects of another material ("Official Gazette of SFRY", no. 23/67)
42. Regulation on safety measures when handling explosives and tin mines in the mining ("Official Gazette of SFRY, no. 9/67, 35/67 and 35/72)

43. Regulation on special safety measures at work on technical measures for developer of acetylene and acetylene station ("Official Gazette of SFRY, no. 6/67, 29/67, 27/69 and 52/90)
44. Instructions on how to perform control over keeping regulations on safety at work and enterprises that produce for specific military purposes ("Official Gazette of SFRY", no. 23/66)
45. Instructions on how to perform control over keeping regulations on safety at work in the organs of internal affairs organs and institutions of Internal Affairs ("Official Gazette of SFRY", no. 66/65)
46. Regulation on special safety measures at work at thermal processing light metal alloys in bathrooms with nitrate salts ("Official Gazette of SFRY", no. 48/65)
47. Regulation on hygiene and technical safety measures for diving ("Official Gazette of SFRY", no. 36/58)
48. Regulation on technical and medical-technical safety measures on works at the chemical-technological processes ("Official Gazette of SFRY", no. 55/50- attachment no. 9)
49. Regulation on hygiene and technical safety measures when working in the quarries and factories, as well as in the extraction of clay, sand and gravel ("Official Gazette of SFRY", no. 69/48)
50. The General Regulation on hygiene and technical safety measures on work ("Official Gazette of SFRY", no. 56/47)
51. Regulation on hygiene and technical safety measures when working in graphic companies ("Official Gazette of SFRY", no. 56/47)
52. Regulation on hygiene and technical safety measures when working in wool mill ("Official Gazette of SFRY", no. 56/47 and 36/50).

1.3.2. Regulation governing the jurisdiction of labour inspection

1. The law on labour inspection („Official Gazette of Montenegro“, no. 79/08 and 40/11)
2. The Law of inspection controls ("Official Gazette of RM", no. 39/03, „Official Gazette of Montenegro“, no. 76/09, 57/11, 18/14, 11/15 and 52/16)
3. The Law on Administrative Procedure („Official Gazette of Montenegro“, no. 56/14, 20/15, 40/16 and 37/17)
4. Criminal Code ("Official Gazette of RM", no. 70/03, 13/04, 47/06, „Official Gazette of Montenegro“, no. 40/08 25/10, 73/10, 32/11, 64/11, 40/13, 56/13, 014/15, 42/15, 58/15)
5. The Law on Offences ("Official Gazette of Montenegro", no. 01/11, 06/11, 39/11 and 32/14)

Regulations for the area of labour relations and employment:

1. The Labor law („Official Gazette of Montenegro“, no. 49/08, 26/09, 88/09, 26/10, 59/11, 66/12, 31/14 and 53/14)
2. The Law on volunteerism („Official Gazette of Montenegro“, no. 26/10, 31/10, 14/12 and 48/15)
3. The Law on the prohibition of abuse at work ("Official Gazette of RM" No.30/12 and 54/16)
4. Employment law and exercising rights arising from insurance against unemployment („Official Gazette of Montenegro“, no. 14/10, 39/11, 40/11, 45/12, 61/13, 20/15 and 52/16)
5. The Law on trade union representativeness („Official Gazette of Montenegro“, no. 26/10, 36/13 and 55/16)
6. The Law on records in the field of labour and employment ("Official Gazette of MONTENEGRO", Nr.69/03, „Official Gazette of Montenegro“, no. 73/10.40/11 and 45/12)
7. The law on foreigners („Official Gazette of Montenegro“, no. 56/14, 28/15 and 16/16)
8. The Law on strike („Official Gazette of Montenegro“, no. 11/15)
9. The Law on the prohibition of discrimination („Official Gazette of Montenegro“, no. 46/10, 40/11, 18/14)
10. The Law on the prohibition of discrimination against persons with disabilities ("Official Gazette of RM" No.35/15 and 44/15)
11. The Law on professional rehabilitation and employment of persons with disabilities ("Official Gazette of RM" No.49/08, 73/10, 39/11 and 55/16)
12. The Law on the safety of the citizens of Montenegro to work abroad ("Official Gazette of MONTENEGRO", Nr. 11/04, „Official Gazette of Montenegro“, no. 73/10, 40/11 and 35/13)
13. The Law on professional training persons with acquired higher education ("Official Gazette of Montenegro", no. 38/12)
14. The Law on health insurance (Official Gazette of RM "no. 06/16, 02/17, 22/17)

15. The Law on social and child safety („Official Gazette of Montenegro“, no. 27/13, 01/15, 42/15, 47/15, 56/16, 66/16 and 01/17)
16. The General Law on education and upbringing ("Official Gazette of RM", no. 64/02, 31/05, 49/07, „Official Gazette of Montenegro“, no. 04/08, 21/09, 45/10, 73/10, 40/11, 45/11, 36/13, 39/13 and 44/13)
17. The Law on vocational education ("Official Gazette of MONTENEGRO", no. 64/02 and 49/07, „Official Gazette of Montenegro“, no. 45/10 and 39/13)
18. Law on the upbringing and education of children with special educational needs ("Official Gazette of RM", no. 80/04, „Official Gazette of Montenegro“, no. 45/10)
19. The Law on higher education (Official Gazette of RM ", no. 44/14, 52/14, 47/15 and 40/16)
20. The Bankruptcy law ("Official Gazette of Montenegro", no. 01/11 and 53/16)
21. General collective agreement ("Official Gazette of Montenegro", no. 14/14).

Sectoral collective agreements:

1. Sectoral collective agreement for information, graphics and publishing activity ("Official Gazette of Montenegro", no. 74/04)
2. Sectoral collective agreement for activity of metal-working, metallurgy and manufacture of machinery, equipment and transport means ("Official Gazette of Montenegro", no. 54/04, 12/05 and 41/05)
3. Sectoral collective agreement for agriculture activities, food and tobacco industries and water management ("Official Gazette of Montenegro", no. 40/04 and 79/05)
4. Sectoral collective labour agreement for the activities of the forestry, wood processing, paper production and processing ("Official Gazette of Montenegro", no. 54/04)
5. Sectoral collective agreement for road traffic ("Official Gazette of Montenegro", no. 33/04)
6. Sectoral collective agreement for construction and industry of building materials („Official Gazette of Montenegro“, no. 49/12 and 06/16)
7. Sectoral collective labour agreement for the chemical, pharmaceutical and textile industry („Official Gazette of Montenegro“, no. 55/14)
8. Sectoral collective bargaining agreement in the area of culture („Official Gazette of Montenegro“, no. 64/16)
9. Sectoral collective bargaining agreement in the area of education („Official Gazette of Montenegro“, no. 10/16)
10. Sectoral collective agreement for Administration and justice („Official Gazette of Montenegro“, no. 18/15)
11. Sectoral collective agreement for maritime transport and port-pretovarne services ("Official Gazette of Montenegro", no. 40/04 and 41/05)
12. Sectoral collective agreement for social activities (Official Gazette of RM "No. 25/15, 31/16 and 32/16)
13. Sectoral collective agreement for residential and communal activity („Official Gazette of Montenegro“, no. 02/12 and 32/12)
14. Sectoral collective agreement for telecommunications („Official Gazette of Montenegro“, no. 55/15)
15. Sectoral collective agreement for institution-and student standards ("Official Gazette CG", Nr. 50/16)
16. Sectoral collective bargaining agreement in the area of education („Official Gazette of Montenegro“, no. 10/16)
17. Sectoral collective agreement for the health services („Official Gazette of Montenegro“, no. 30/16)
18. Collective bargaining agreement for activity tourism and hospitality („Official Gazette of Montenegro“, no. 29/11).

Regulations for safety and health at work:

Laws and by-laws from point 1.3.1

1.3.3 Regulations which regulating insurance and/or compensation for accidents and diseases at work (including a list of diseases and injuries related to work which is the subject of return) as well as the requirements for recording and reporting

1. The Law on health insurance (Official Gazette of RM ", no. 06/16, 02/17, 22/17 and 13/18)
2. The Law on health care („Official Gazette of Montenegro“, no. 03/16, 39/16 and 2/17);
3. The law on pension and disability insurance (Official Gazette of RM "No. 54/03, 39/04, 61/04, 79/04, 81/04, 29/05, 14/07 and 47/07 and " Official Gazette of RM "No. 12/07, 13/07 , 79/08 14/10, 73/10 78/10, 34/11, 39/11, 40/11, 66/12, 36/13, 38/13, 61/13, 06/14 , 60/14, 10/15, 44/15, 42/16 and 55/16);
4. The Labor law („Official Gazette of Montenegro“, no. 49/08, 26/09, 88/09, 26/10, 59/11, 66/12, 31/14 and 53/14)
5. The Law on the safety of the health at work („Official Gazette of Montenegro“, no. 34/14)
6. Insurance Act (Official Gazette of RM", no. 78/06 and 19/07 and the Official Gazette of Montenegro", no. 53/09, 73/10, 40/11, 45/12, 6/13 and 55/16)
7. Regulation of the risks by type of insurance ("Official Gazette of Montenegro", no. 1/13)
8. Regulation on establishing professional diseases ("Official Gazette of the Republic of Montenegro", no. 66/04)
9. Regulation on the contents and manner of issuing reports on hurt at work ("Official
10. Gazette of MONTENEGRO", no. 18/93)

1.4. The laws or regulations that include aspects of osh, but are issued by other ministries

1. The Law on mining ("Official Gazette of Montenegro", no. 65/08, 74/10 and 40/11)
2. The Law on ionizing radiation and radiation safety ("Official Gazette of Montenegro", no. 56/09, 58/09, 40/11 and 55/16)
3. The Law on transport of hazardous materials ("Official Gazette of Montenegro", no. 33/14 and 13/18)
4. The Law on safety and rescue ("Official Gazette of Montenegro", no. 13/07, 5/08, 86/09, 32/11 and 54/16)
5. The Law on the safety of persons and property ("Official Gazette of Montenegro", no. 1/14 and 6/14)
6. The Law on the safety of maritime navigation ("Official Gazette of Montenegro", no. 62/13, 6/14, 47/15 and 71/17)
7. The Law on the safety, organization and efficiency of rail transport („Official Gazette of Montenegro“, no. 1/14)
8. Regulation on closer terms to fulfill a legal entity to perform health care employees ("Official Gazette of Montenegro", no. 60/16)
9. Regulations supplementing the regulations on conditions in terms of safety at work and accommodation of the crew and other persons on Board ("Official Gazette of MONTENEGRO", 26/17)
10. Regulation on the type of mode volume and deadlines for performing the medical examination of employees in workplaces with special conditions of work or with increased risk ("Official Gazette of Montenegro", no. 43/17)
11. Regulation on the neighboring table of contents a risk assessment ("Official Gazette of Montenegro", no. 014/14)
12. Regulation on the contents and manner of submitting a report about systematic study of non-ionizing radiation level ("Official Gazette of Montenegro", 56/13)
13. Regulation on the logging of non-ionizing radiation sources ("Official Gazette of Montenegro", 56/13)
14. Regulation on how to determine the limits of what is allowed and the greatest level of exposure to optical radiation ("Official Gazette of Montenegro", no. 2/14)
15. Regulation on closer content action programme on implementation of safety measures against non-ionizing radiation (Official Gazette of Montenegro, Nr. 23/14)
16. Regulations on limits for exposure to electromagnetic fields ("Official Gazette of Montenegro", no. 06/15)
17. Regulation on the types of sources of electromagnetic fields for which obtains license for the use of sources of electromagnetic fields ("Official Gazette of Montenegro", no. 42/15)
18. Regulation on non-ionizing exist types of significant sources of radiation that produces studies ("Official Gazette of Montenegro", no. 42/15)
19. Regulation on the first and periodic measurements of the levels of electromagnetic fields ("Official Gazette of Montenegro", no. 56/15)
20. Regulation on the method selection and layout tags non-ionizing sources of radiation ("Official Gazette of

Montenegro", no. 65/15)

21. Regulation on the types of devices that emit ultrasound and optical radiation for which is issued license to use ("Official Gazette of Montenegro", no. 65/15)
22. Regulation on the method of checking and/or testing devices which emit ultrasound and optical radiation ("Official Gazette of Montenegro", no. 66/15)
23. Regulation on the method of marking and requirements for the safe use of devices that emit optical radiation ("Official Gazette of Montenegro", no. 66/15)
24. Regulation on the vocational training of professionally exposed persons and entities responsible for the implementation of safety measures against non-ionizing radiation ("Official Gazette of Montenegro", no. 21/16)
25. Regulation on closer terms for carrying out professional activities of safety of non-ionizing radiation ("Official Gazette of Montenegro", no. 21/16)
26. Regulation on closer terms in terms of personnel, equipment and space for professional training of professionally exposed persons non-ionizing radiation ("Official Gazette of Montenegro, Nr. 41/16)
27. Regulation on the conditions for funding personal protective equipment when using non-ionizing radiation sources ("Official Gazette of Montenegro", no. 4/17)
28. Regulation on the safety of machines ("Official Gazette of Montenegro", no. 22/14 and 65/17)
29. Regulation on technical requirements for the equipment under pressure ("Official Gazette of Montenegro", no. 89/17)
30. Regulation on a removable equipment under pressure ("Official Gazette of Montenegro", no. 1/16)
31. Regulation on personal protective equipment ("Official Gazette of Montenegro", no. 17/15)
32. Regulation on official and working clothes and protective equipment on the Board of maritime safety ("Official Gazette of the Republic of Montenegro", no. 77/04)
33. Safety policy elevators ("Official Gazette of Montenegro", no. 2/14 and 27/14)

1.5. National policy osh

Safety and health at work and their efficiency to a great extent depend on the socio- economic conditions, the degree of economic development and traditions of each country. For their establishment and respect, the most important is the legislative framework which defined subjects and their rights and responsibilities, relationships, responsibilities, activities and the means to achieve them.

Healthy workplace for all employees in Montenegro, prevention workplace accidents, improving the conditions in which employees perform their work tasks, as well as improving the health of all participants in the production process, shared the concern of the employer and the employee.

The principle of safety at work, is a constitutional principle in Montenegro under article 64 paragraph 3 and 4 of the Constitution. Constitutional right is the right to work, to free choice of profession and employment, to just and humane conditions of work and to safety during unemployment. Every employee has the right to appropriate the proceeds, as well as the right to limited working hours and paid holidays. Healthy, motivated and satisfied workforce is important for social and economic well-being of each country. Safety and health at work contribute to the greater satisfaction of employees, greater productivity and greater interest in achieving organizational goals and interests. A low level of safety and health at work affects: lower motivation, decreased performance, increased fluctuations, the increase in the number of workplace accidents, increased rates of sick leave and disability rates increase. Accidents and injuries reduce the gross domestic product and reduce the welfare of state and other entities. Any injuries in the work place and every professional disease gain employees in the workplace is a major expense for the employer. Tired, demotivated and unhappy employees are not productive, efficient and creative work, and from that derive the greatest loss for the employer. Efficiency and safety of health at work depends on the degree of commitment of all the factors in the employer, and at all other levels. Risk assessment and take appropriate safety measures, employers can enhance your productivity and thus to increase their profit. Employer who is aware of the importance of safety and health at work, will invest more than the required minimum, and thus provide an appropriate level of long-term care and health at work of their employees.

Safety and health at work contribute to the greater satisfaction of employees, greater productivity and greater

interest in achieving organizational goals and interests. Safety and health at work should be an integral part of the life of each employee, part of the general culture and what happens at each employers and in society in general.

The Government of Montenegro in July 2016. adopted a Strategy for the improvement of occupational health and safety in Montenegro 2016. - 2020. with an action plan for its implementation. This strategy acknowledges the legal regulations in this area and is based on the principles of social dialogue at all levels between employers, employees, employee representatives and trade unions, who are obliged to cooperate in the process of determining their rights, duties and responsibilities relating to safety and health at work. The strategy includes all socio-economic spheres, to provide a vision of what he wants to achieve – complete the application of the regulations, changes of consciousness of the importance of the application of safety measures and health at work, socially responsible companies and responsible society in as a whole.

Vision on safety of health at work is reflected in the fact that it is necessary to ensure the development of prevention and health promotion and safety at work for safe and healthy jobs, which creates adequate conditions for work to employees and employers, the growth productivity, competitiveness and economic development.

Mission on safety of health at work is to set up and application of quality standards in the safety and health at work, strengthening the quality of work of experts for safety, raise awareness, system monitoring and analysis of data, exchange of good practices, information and advancing knowledge in the field of safety and health at work.

Basis objectives that will realize the activities of the Ministry of Labour and Social Welfare , in collaboration with the other participants in this area are:

- strengthening the policy that deals with safety and health at work, including the
- integration and safety of health at work of employees in other sectoral policies and finding new synergies;
- reduce the number of workplace accidents in relation to the workplace and the environment;
- reducing the number of occupational diseases and work-related diseases;
- reduce the number of workplace accidents that are causally related to the fulfillment of work obligations;
- improving the health status of employees (prevention);
- reduction of economic losses due to injuries at work, occupational diseases and work- related diseases (sick leave, early retirement and disability).

These goals can be achieved through joint action of the Ministry of Labour and Social Welfare and of all entities responsible for the safety and the health and safety of employees in order to:

- prevent or reduce the numerous and different risks at work and in connection with the work;
- prevent risks arising from new technologies;
- raise the level of safety and health at work in all activities, and in particular towards
- actors responsible for safety and health at work of which there is a presumption that the legislation does not contain provisions on the subject;
- provide safety of special categories (employed women during pregnancy, persons under 18 years of age, and persons with disabilities).

Implementation of the relevant activities it is possible to:

- establish the composition for the collection and processing of data, their analysis, research and planning and undertaking of appropriate activities;
- achieve a basic strategic goal of "safe and healthy workplaces";
- continuous improvement of all areas of safety and health at work.

The Montenegrin Parliament was in session from July 25, 2014, adopted a Law on the safety of the health and safety ("Official Gazette of Montenegro", no. 34/14). This law was put out of power the Law on Safety at Work ("Official Gazette of RM", no. 79/04 and "Official Gazette of Montenegro", no. 26/10 and 40/11)

In Montenegro the institutions and organisations that are taking activities in the field of safety and health at work are:

- The Parliament Of Montenegro;
- The Government Of Montenegro;
- Policy Department, Administration for inspection issues, Fund for health insurance, Retirement and disability insurance Fund, the Institute for development and research in the field of safety and health at work, the Chamber of Commerce of Montenegro;
- Social partners - Union of Employers', the Federation of trade unions, Trade union of free trade unions of Montenegro;
- Social Council composed of representatives of the social partners;
- 38 Authorized organizations for safety and health at work;
- NGOs Safety at Work Association of Montenegro;
- Insurance companies.



OSH national policy is based on the following objectives:

- Legislation, regulations and other General acts on safety and health at work in order to comply with EU regulations and ILO – and, as well as their implementation and at the same time encouraging the social partners to the issue of safety and health at work above all regulates through a system of collective bargaining;
- On the development and adoption of mechanisms and procedures for the implementation of regulations on safety and health at work;
- Raising awareness of the importance and gradually introducing the safety and health at work in juvenile education system of Montenegro;
- The promotion of a culture of prevention and examples of good practice in the field of safety and health at work at all levels to organize the employer, employees and the whole state;
- Improvement of statistical information collection and database development;
- Connect with the organizations in the field of safety and health at work;
- Promotion of social dialogue;
- Informing employees and their participation in matters relating to the safety and health at work;

1.6 Summary

With the accession of Montenegro the EU for the period 2018-2020 in the chapter 19 – social policy and employment provided for compliance with the legal acquires of the European Union in the field of social policy and employment concerns the areas of labour law, safety and health at work, the equal treatment of men and women in matters of employment, social safety, social inclusion, employment policies, social dialogue. In addition, there are specific binding regulation for all the Member States of the European Union concerning the prohibition of discrimination on the grounds of racial and ethnic origin, religion and belief, disability, age and sexual orientation. Safety and health at work is a very important part in the EU accession process and in the previous period have been met all program goals that will make it possible to adopt all standards and regulations and create a legal framework which will be the same as is in the EU.

1.7 Situational analysis and suggestions

Montenegro is well on its way to harmonise all regulation with those of the EU, and in the future will be a special challenge for their implementation. On the way of economic growth, raising awareness of the importance and gradually introducing the safety and health at work in juvenile education system of Montenegro, promotion of social dialogue, improve the collection of statistical data and development database, informing employees and their participation in matters relating to the safety and health at work, and strengthening the administrative capacity of all actors in the field of OSH will be the directions of activity, and also the proposals for improving the situation in this area.

1.8 Conclusion and recommendations to the legislative framework and the policy

During the 2018. is expected to adopt the Law on modifications and amendments of the Law on safety and health at work which is approved from the European Commission regarding compliance with Council Directive 89/391/EEC of 12 June 1989 on the introduction of measures, to encourage improvements in safety and health of employees at work (OJ L No. 183. of 29.6.1989. p. 1), amended by Regulation (EC) No 1137/2008 of the European Parliament and of the Council of 22. October 2008. about how some acts using the procedure given in Article 251. The contract, the decision of the Council in 1999/468/ES concerning the regulatory process with a review of the regulatory process-Customize with exam-part one (OJ No. L 311 of 21.11.2008. p. 1.), and implemented the directive of the European Parliament and of the Council 92/57/EEC of 24. in June of 1992. on minimum requirements for the safety of health at work at temporary or mobile construction sites. In the future we need to work on further approximation of legislation in terms of full compliance with the regulation that applies to the construction sites, because the law

will provide a legal basis, and the introduction of co-ordinators and regulation safety and health measures at the construction sites and harmonization of existing legislation with the EU legislation in the area of OSH will be a priority.

2 COMPLIANCE WITH INTERNATIONAL STANDARDS

2.1 Turning on application of international standards in national law and practice

Harmonisation and implementation of international standards in national law and practice is a priority in the accession process, the European Union. From 2015. to date, Montenegro adopted 39 new regulations which are in legal system transferred the relevant EU directives, and after restoration of independence by 68 ILO that are retrieved by the method of succession, ratified the Convention on the safety of maternity Convention number 183, safety and health in construction number 167, Konvencija about promotional framework for safety and health at work the number 187 and Convention on the work of seamen from 2006.

Institute for Standardization of Montenegro (ISME) is responsible for the adoption of Montenegrin standards and related documents respecting the requirements and recommendations of international and European organizations for standardization. 2007 is adopted MEST OHSAS 18001:2007- Occupational health management systems and safety on paper-requirements, and 2010. MEST OHSAS 18002:2010 Health Management-Systems and safety on paper-Guidelines for the application of the OHSAS 18001:2007, as well as a number of related standards that are directly or indirectly concerned with safety and health at work.

2.2 SUMMARY

Harmonisation and implementation of legislation in this area is based on the principles of social dialogue at all levels between employers, employees, employee representatives and trade unions, who are obliged to co-operate in the process of establishing their rights, obligations and responsibilities relating to safety and health at work. This process, as well as the process of adopting and applying the međunarodnih standard includes all socioeconomic spheres, in order to achieve the vision of full adoption regulations, changing the consciousness of the importance of the application of safety measures and health at work, socially responsible responsible companies and society as a whole.

2.2.1. The degree of compliance with the ILO Conventions on OSH

International Labour Organisation-ILO (International Labour Organization - ILO) the specialized agencies of the United Nations that promotes social justice and internationally recognized human and labour rights. Was founded in 1919., the Charter from Versailles, and has become the first specialized UN agency 1946..

The ILO formulate international performance standards in the form of conventions and recommendations setting minimum standards of employment rights: freedom of Association, right to organize, collective bargaining, abolition of forced labour, equal opportunities and equal treatment, and other standards regulating conditions across the entire range of issues related to the work.

The ILO promotes the development of independent employers' and workers' organisations and these organisations provides training and consulting services. Provides technical assistance in the following areas: vocational training and vocational rehabilitation; employment policy; labour administration; labour law and industrial relations; development of management of the cooperative; social safety; statistics related to work, as well as safety and health at work.

Within the United Nations system, the ILO is unique for its tripartite structure in which employees and employers participate in the work of administrative bodies organizations as full partners in Governments.

Montenegro is on 14.07.2006., as 179 States, became a full member of the International Labour Organization, becoming a member of the United Nations, 28.06.2006. This Act has accepted the rights and obligations arising from its membership.

The ILO was founded with the mission to contribute to the achievement of the General and permanent peace which can only be based on social justice and humane system work and what is set forth in the preamble of its Constitution and in the Declaration concerning the aims and purposes of the ILO, adopted in Philadelphia 10.05.1944.

Taking into account the practice and experience gained from the previous membership of the ILO, as well as the fact that Montenegro was executing fully the commitments made membership in this international organization, and it has shown to possess the capacity to take on all the rights and her duties as a full member, 2007. access to adopted through a succession of 68 Convention which was signed State Union of Serbia and Montenegro. After that, Montenegro is also confirmed in the Convention on the safety of maternity Convention number 183, safety and health in construction number 167, Convention on the promotional framework for occupational safety and health the number 187 and Convention on the work of sailors from 2006.

Montenegro is obliged to inform the International Labour Organization about the degree of application of multilateral environmental agreements and conventions, article 9 of the Constitution of the Republic of Montenegro stipulates: "Ratified and published international treaties and general adopted acts of the international law are an integral part of the internal legal order, have primacy over domestic legislation and directly applicable when related edit differently than the internal legislation".

2.2.2 Level of compliance with EU directives

Relations between Montenegro and the EU in the stabilisation and association process (SAP) were established in July 2001. At the Thessaloniki Summit in 2003. confirmed the European perspective of the Western Balkans, and in July of the same year, established the Enhanced permanent dialogue as a form of regular consultations between Montenegro and the EU.

After the referendum on Montenegro's independence and the proclamation of independence in the Montenegrin Assembly, the EU said it will continue to develop relations with Montenegro as an independent and sovereign State. The ensuing bilateral recognition of independent Montenegro the EU Member States.

Stabilisation and association agreement between the European communities and their Member States, of the one part, and the Republic of Montenegro, of the other part, was signed on October 15, 2007., in Luxembourg, and the Law on ratification of the stabilisation and association agreement between the European communities and their Member States, of the one part, and the Republic of Montenegro, on the other hand, is published in the Official Gazette of Montenegro no. 7/07 from 20.11.2007.

Montenegro is on December 15. of 2008. applied for membership in the European Union. Council of the European Union sent on April 23. of 2009. request the European Commission to prepare an opinion on Montenegro's application for membership, after that, Montenegro is on July 22. of 2009. get the EC questionnaire that included questions from all areas of the legal heritage of the EU, on the basis of which the EC has drafted an opinion and the Council's recommendation gave the EU to grant Montenegro candidate status

With the accession of Montenegro the EU for the period 2018-2020 in the chapter 19 – social policy and employment provided for compliance with the legal tekovinom of the European Union in the field of social policy and employment concerns the areas of labour law, safety and health at work, the equal treatment of men and women in matters of employment, social safety, social inclusion, employment policies, social dialogue. In addition, there are specific binding Regulation for all the Member States of the European Union concerning the prohibition of discrimination on the grounds of racial and ethnic origin, religion and belief, disability, age and sexual orientation. Safety and health at work is a very important part in the EU accession process and in the previous period have been met all program goals that will make it possible to adopt all standards and regulations and create a legal framework which will be the same as is in the EU.

In this program, part of the safety and health at work 3 laws are harmonized with EU directives, as follows:

1. The law on the safety of the health and safety („Official Gazette of Montenegro“, no. 34/14)
2. The law on the safety, organization and efficiency of rail transport („Official Gazette of Montenegro“, no. 1/14) and
3. The law on the safety of non-ionizing radiation ("Official Gazette of Montenegro", no. 35/13), and 36 by-laws

2.3 Situational analysis and suggestions

Conclusion and recommendations compliance with international standards

Harmonisation and implementation of legislation in this area is based on the principles of social dialogue at all levels between employers, employees, representative of employees and trade unions, who are obliged to cooperate in the process of establishing their rights, obligations and responsibilities relating to safety and health at work. This process, as well as the process of adopting and applying the international standard includes all social and economic spheres, in order to achieve the vision of full adoption regulations, changing the consciousness of the importance of the application of safety and health at work measures, socially responsible companies and society in general.

It is necessary to continue with further harmonisation and implementation of legislation and better connect with international organizations and access to EU funding.

3 ORGANISATIONAL FRAMEWORKS AND MECHANISMS OF IMPLEMENTATION

3.1 The competence of the direction for osh

Regulation on the organisation and mode of operation of public administration ("Official Gazette of Montenegro", no. 5/12, 25/12, 44/12, 61/12, 20/13, 17/14, 6/15, 80/15, 35/16, 41/16, 61/16, 73/16, 3/17, 19/17 68/17 and 87/17), Ministry of Labour and Social Welfare carries out administrative tasks related to the safety of health at work.

During the 2013 under the Ministry of Labour and Social Welfare, in the organizational units of the Labour Directorate, established the Direction for safety and health at work. In this Direction are jobs relating to: monitoring, study and encourage the development of health and safety; the preparation of regulations in the field of health and safety; monitoring and implementation of multilateral environmental agreements conventions and EU directives in the field of health and safety; activities relating to negotiations on the accession of Montenegro the EU by chapters in the field of safety at work; giving opinions about the application of legislation in the area of safety at work; preparation of a technical basis for the development of national programmes for the development of occupational safety and monitoring its exercise; monitoring and assessment of occupational safety and preparing positions for a unique arrangement of work safety measures that are regulated by regulations in the area of safety at work; providing expert assistance in the area of health and safety of employees; preparation of a methodology for conducting reviews and studies in the field of safety at work; collecting and analyzing data about injuries at work, occupational diseases and work-related diseases; organizing and taking the professional exam for obtaining the title of professional persons to perform jobs and safety; processing of materials and preparation of approval for work authorized organizations for work safety at work that its activities are conducted for the approval of this Ministry; keeping registers of authorized organizations that perform activities for the approval of this Ministry and supervision over their work; keeping registers of persons who have passed the Professional exam for obtaining the title of professional persons in the organisation of this Ministry; preparation of information, reports and analysis in the field of occupational safety, processing and documentation of materials; perform information-documentation activities in the field of the safety of employees; encouraging education and culture development work in the area of safety at work, training of employees, employers, professional persons that deal with matters of occupational safety, inspectors and others; informing the public about safety at work; achieving cooperation with NGO's.

3.2 Labour inspection services

3.2.1 Description

From 01.06.2012, the Department of Labour inspection moved from the Ministry of Labour and Social Welfare in the Administration for Inspection Affairs. The Department of Labour inspection carry out the activities relating to the: inspection over the implementation of laws, by-laws and other regulations in the field labour relations, employment and safety and health at work; taking and implementing administrative and other measures and actions in order to address the irregularities and operations into line with legislation; juridical authority orders, submission of required to

start infringement procedures, filing criminal and other relevant reports (initiating procedures before the competent authorities); giving the initiative to amend the law, other regulations and General acts and proposing measures to improve the situation in the area of supervision; preparation of analyses, reports and information in the scope of work of the Department; achieving cooperation with other organs of administration, institutions and economic entities; as well as other tasks within the competence of the Department.

In the Group of jobs for supervision in the field of labour relations and employment perform the activities related to inspection in terms of compliance with laws and other regulations and General acts in the field of labour relations and employment and the taking of administrative and other measures and actions in order to address the irregularities and ensure proper application of the regulations; the issuance of civil orders, submission of required to start infringement procedures, filing criminal and other relevant reports (initiating procedures before the competent authorities); preparing analyses, reports and information from the scope of the working group activities, as well as other tasks falling under competence of the inspection work for this group of jobs.

In the Group of jobs for supervision in the field of safety and health at work perform the activities related to inspection in terms of compliance with laws and other regulations and General acts in the field of safety and health at work and the taking of administrative and other measures and actions in order to address the irregularities and provide proper application of regulations; the exercise of collective have squatted in a heavy, and deadly workplace accidents; the issuance of civil orders, submission of required to start infringement procedures, filing criminal and other relevant reports (initiating procedures before the competent authorities); preparing analyses, reports and information from the scope of the working group activities, as well as other tasks falling under competence of the inspection work for this group of jobs.

By the act of systematization number of positions for labour Inspectors are 48 (32 for the area of labour relations, including the Chief Labour Inspector and 16 for safety and health at work). They employed a total of 33 inspectors, of which 25 for the area of labour relations, including the Chief Labour Inspector (all BSc lawyers) and 8 for safety and health at work (BSc various technical and technological professions).

Of the total employed labour inspectors, 12 is the place of work in Podgorica (1 Chief Labour Inspector, 9 labour inspectors for the area of labour relations and employment and 2 inspectors for safety and health at work), while the others are arranged in other cities Cetinje 1 (one inspector for the area of labour relations and employment), Nikšić 3 (2 inspectors work for the area of labour relations and employment and 1 inspector for safety and health at work), Budva 1 (one inspector for the area of labour relations and employment), Ulcinj 1 (1 Inspector work in the area of labour relations and employment), at least two (one inspector for the area of labour relations and employment and 1 iinspector for safety and health at work), Tivat 1 (1 Inspector for safety and health at work), Herceg Novi 1 (1 Inspector for the area of labour relations and employment), Bijelo Polje 4 (3 inspectors work for the area of labour relations and employment and 1 inspector for safety and health at work), Berane 2 (1 inspector for the area of labour relations and employment and 1 inspector for safety and health at work), Blue 1 (1 inspector for the area of labour relations and employment), Rožaje 1 (one inspector for the area of labour relations and employment), Pljevlja 2 (1 inspector for the area of labour relations and employment and 1 inspector for safety and health at work), Žabljak 1 (one inspector for the area of labour relation and employment).

Department of Labour Inspection through the implementation of IPA 2009 project "Harmonization and implementation of regulation of Labour inspection and Safety at Work inspection in accordance with EU acquis" technically equipped with 16 cars and all inspectors are equipped with laptops, mobile printers and mobile scanners, and from 2015. took in force IRIS (information system of Labour Inspections).

3.2.2. Case study:

A priority task of the inspection work is combating the informal economy in the labour market (informal employment and unpaid work with formal employees) and ensure their safe workplace, from the point of view of safety and health at work.

Related to report from 2017. in the area of Labour relation and employment, attention was on control: the implementation of measures to the right of employees to work and from work (regular payment of salaries, fees, salaries and other earnings, vacations and absences, working time, special safety of women, youth and persons with disabilities and safety in cases of termination of employment), as well as the control of legality of employment.

In the area of Safety and health at work, attention was on control: of providing a measure of safety and health at work, or conditions of work that do not lead to injuries at work, occupational diseases and work-related diseases, aligning normative acts with the provisions of the Law on the safety of health at work, of providing inspection and testing of work equipment and testing conditions working environment within the prescribed deadlines, training employees for safe work, of providing specialist medical examination of employees who work on jobs with special conditions of work, i.e. an increased risk, of organizing jobs and safety of health at work with the employer, managing records of safety and health at work, procurement, issuance and provision of personal protective equipment, the collective insurance of employees, taking the necessary measures and determining of first aid, fire prevention and evacuation of employees and making the Act of Risk assessment.

During the reporting period, labour inspectorate carried out a total of 9,130 inspection (in the area of labour relations and employment and in the area of 6,747 and occupational health 2,383), namely: 5,701 regular, 1,978 control and 1,451 by the initiative (complaints), where determined 5,263 total irregularities.

Data from monitoring:

Inspections and measures	For the area of labour relations and employment	For safety and health at work	TOTAL
Inspection number	6.747	2.383	9.130
- regular	4.311	1.390	5.701
- by initiative	1.391	60	1.451
- control	1.045	933	1.978
The number of identified irregularities	2.796	2.467	5.263
Number of preventive measures	1.193	747	1.940
Number of decisions	37	163	200
Number of established conclusions	922	849	1.771
The number of fines	2.272	651	2.923
The amount of fines	1.120.650,00 €	201.900,00 €	1.322.550,00 €
The number of requests for misdemeanor procedure	3	13	16

Inspections by activity

Activity	Broj	%
Catering and tourism (accommodation and meals)	2.152	23,57
Market	1.834	20,09
Construction	1.086	11,89
Manufacturing and trades	2.403	26,32
Education, information and communication	227	2,49
Health and social care	144	1,58
Financial, technical and business services	71	0,78
Transport and storage	106	1,16
Manufacturing	307	3,36
Electrical companies (supply of electric energy, gas, steam and air conditioning)	36	0,39

Agriculture, fisheries and forestry	26	0,28
Arts, entertainment and recreation	253	2,77
Mining and Extraction	10	0,11
Administrative and support service activities	62	0,68
Financial and insurance activities	85	0,93
Professional, scientific and technical activities	45	0,49
Others	283	3,10

3.2.3 Summary

In relation to the number of employees, especially in the area of supervision of safety and health at work in the European Commission's official report, Montenegro has one inspector on the 22000 employees, while the standards of the EU one inspector on 10000 employees. In this sense, it is necessary to strengthen the inspection personnel from at least eight inspectors work for safety and health at work. Also, the Labour Inspectorate has an unfavourable age structure, because the average age of over 52 years.

Permanent training of inspectors in accordance with the standards of modern labour inspections in the EU, is a priority task in the coming period.

3.3 Department of occupational medicine

3.3.1 Description

According to the WHO and ILO, occupational medicine is the promotion and ensure the greatest degree of physical, mental and social well-being of employees in all professions, with a particular focus on:

- the concept of prevention,
- safety of health of employees and their working ability and capacity.

This definition set by the concept, including the make and model of the organization and the provision of services of occupational medicine, which as for the first time

inaugurated in Montenegro through the Strategy of improving the occupational medicine in Montenegro. It's a new, comprehensive concept of occupational medicine, which in addition to narrow interpretations of the prevention of occupational diseases and injuries includes the safety and promotion of the health of all employees and their working ability. Healthy, motivated and satisfied employees is a fundamental requirement and the key to achieve future social and economic prosperity and progress of any society. To achieve this goal is not sufficient to take measures to prevent risks in the workplace and safety of employees. It is necessary to take positive measures to enhance the existing employee health and health promotion as well as the establishment of a culture whose focus is occupational health and safety. These measures include health promotion, education and training. A new concept of medicine of work for all employees, regardless of the sector, the nature and type of employment, the size and profile of the employer or geographic location is sublimiran in BOHS (Basic Occupational Health Services) – model of providing basic medical services operation. BOHS model involves access to services that are relevant, accessible, affordable, good-quality and priuštive. This model proposes a gradual development of the infrastructure and capacity of the basic level to the top level of comprehensive occupational medicine. Occupational diseases and injuries at work represent enormous financial burden on the social safety system, and therefore require an integrated, coordinated and strategic response, as well as cooperation between the main actors involved in the process of developing policy improvement of health and safety at work. Risk assessment and take appropriate safety measures, employers can improve your productivity, and thus to increase their profit. However, the level of awareness of the benefits in inconsistent and even in society. Some employers, particularly those in small and medium-sized enterprises (SMEs), they do not have enough knowledge or information in order to be able to recognize the positive economic effects of improving health and safety at work. Therefore, it is necessary to continuously invest effort in order to develop and raise awareness by employers and policy makers about the

benefits in healthy workers in healthy workplace. Improving the health of employees has significant implications in terms of achieving Millennium development goals. The process of globalization has significantly changed economic structure and working conditions on almost every workplace. The need for high-quality and efficient services of occupational medicine is very intense. Needs are changing in qualitative terms and become necessary. Target groups are becoming dynamic and mobile, while jobs uncertain and temporary. Everything is more difficult to organise quality medicine work. One of the key activities is the work place assessment in order to identify risks and hazard to which the employee is exposed to during the process of work, including working conditions, as well as the identification of employees who are exposed to risks and estimate the level of risk associated for the various groups of employees. Particular attention will be focused on assessing the health of employees in the form of various types of health examinations. The primary purpose of the medical examination is the assessment of abilities of employees to perform their jobs and assignments, assessment of possible health damage that can be caused by exposure to harmful agents in the working process and identify professional diseases. Audits and risk assessments form the basis for risk management. Information about identified risks in the workplace must be secure managers as persons responsible for the implementation of measures of prevention and control. For the purpose of providing a fuller understanding of the information about the risks, the employer is responsible for the education of employees about the risks and hazards in the workplace to the avoidance, prevention and safety. Business education can be trusted with providers of occupational medicine. Optimal arrangement of occupational medicine assumes the existence of a functional multidisciplinary team. Global health action plan 2008-2017 workers represents a framework for pooling efforts of all health and other entities in order to protect and improve the safety of employees, which is the political impulse for the primary prevention of work-related diseases and assumption to ensure coherence in terms of planning, provision and evaluation of health intervention in the workplace. All Member States of the WHO, including Montenegro actively contributed to the development and adoption of a global action plan, whose basic goals:

1. development and implementation of national sectoral policies in the areas of safety of workers' health;
2. safety and promotion of health in the workplace;
3. improving the availability of services of occupational medicine;
4. provide evidence on which to base interventions and measures for health promotion and safety at work;
5. multisector improvement access for health and safety at work.

Analysis of existing situation of specific health safety of employees came up to knowing that certain categories of employees more exposed to risks in the workplace; Also, they were identified and specific challenges with the trend of further growth, as follows:

- demographic change and the ageing of the population,
- new trends in terms of employment, including self-employment, contracting performing jobs and provide services and a steady influx of migrant workers

It is important to note that the proportion of the female population in the total number of employees is growing too.

It is a fact that tracks the gender segregation in the workplace. Therefore set out the measures, emphasis is placed on those aspects of health and safety at work that particularly afflict women's population. The proposed solutions will have a positive impact on the safety and health of workers, which is of general social interest and the most important resource for development and health in line with global objectives in this area. A new concept of medicine of work for all employees, regardless of the sector, the nature and type of employment, the size and profile of the employer or geographic location includes access to services that are relevant, accessible, affordable, and good quality. The proposed solutions will contribute to the development of infrastructure and capacity of the basic level to the top level of comprehensive occupational medicine.

3.3.2 Summary of major activities

Occupational medicine is preventive activity whose main task is the maintenance and improvement of health of employees and the longer the preservation of working ability. Based on the multidisciplinary activity whose main goals are:

1. remove potentially dangerous factors in the workplace,

2. Prevention of occupational diseases and accidents at work,
3. improvement of the health of employees,
4. improvement of living conditions and the organisation of work,
5. high level physical and mental state employees and maintain their working capacity.

The workplace is often a potentially dangerous environment. Occupational hazard for health and safety at work often covers a large number of employees. According to some estimates 30-50% of employees exposed to the adverse physical, chemical or biological factors, excessive heavy physical work or adverse ergonomic working conditions. A particular problem was the psychological burden of the workplace that may result in stress symptoms.

With existing health problems work environment in the immediate future will occur and new problems related to the new dangerous technologies, the new physical and chemical causes the working set, which will be even more pronounced because of the tendency of aging workers population and employment particularly sensitive meetings (chronic patients, disabled persons).

In accordance with the Law on safety and health at work and Regulation on closer terms to fulfill a legal entity to perform health care employees ("Official Gazette of Montenegro", no. 60/16), an Authority of state administration in charge of Health Affairs, along with the previously obtained the consent authority the state administration competent for Labour Affairs shall prescribe and shall issue the authority legal person registered in accordance with the law, if the personnel, organizational, technical and other conditions to fulfil the following tasks:

- 1) participates in the assessment of risk to the business and in the work environment in the preparation of the risk assessment;
- 2) meets employees from risks to health associated with their work and conducts health education employees;
- 3) identifies and examines the causes of occupational diseases and work-related diseases;
- 4) evaluates and determines the specific health conditions that must meet the employees to perform specific jobs in the workplace, in the process of work or for the use or handling of certain resources to work;
- 5) is done prior and periodic medical examinations of employees in accordance with the regulations on the safety of health and safety;
- 6) issued a report about the health examination of meeting the health conditions in the workplace with increased risk;
- 7) conducts health care professional affected employees;
- 8) organizes first aid, rescue and evacuation in case of harming employees or damage;
- 9) identifies the causes of disability of employees at work and propose measures for their elimination, participates in the process of professional rehabilitation and gives advice in selecting other relevant work by other medical skills;
- 10) proposes an employer measures for improving the health of employees, particularly those who are exposed to increased risks of injury or damage to health;
- 11) advises the employer when selecting and testing new assets and funds and equipment for personal safety and safety from the point of view of the safety of health of employees;
- 12) participates in the analysis of workplace accidents, occupational diseases and work-related diseases and take the relevant records;
- 13) immediately cooperate and coordinate on matters of safety and health at work with a professional face, or professional service;
- 14) and other businesses.

Data collected in connection with the employee's medical examination which is done in accordance with the

regulations on the type of mode volume and deadlines for performing the medical examination of employees in workplaces with special conditions of work or with increased risk ("Official Gazette of Montenegro", no. 43/17) are confidential in nature and under the supervision of the authorized institutions for health care employees, or the selected doctor who keeps records of medical examinations. This information may be supplied to other entities only with the written consent of the employee. Report on the medical examination of an employee on health capacity to perform specific activities shall be submitted to the employer in a way that does not infringe on the principle of confidentiality of personal data. Is not allowed to use the data collected on the basis of medical examinations of employees contrary to purpose or for the purpose of discrimination against employees.

In Montenegro, there are 25 healthcare facilities for the work of the authorized health institution for the protection of employees: 17 public health institutions (health centers) and 8 private health care institutions

3.3.3 Summary of experts for OSH

Professional person is a person who has the required graduates and passed the Professional exam for occupational safety in the relevant activities, and that the employer specified in written form. The exam can be persons who have a university degree of technical and other appropriate professions and one year of work experience in the profession. Candidate must pass exam in front of Examination Commission approved by the Minister of Labour and Social Welfare from a list of Examiners, in accordance with the Regulation on passing the Professional exam for the persons who are engaged in safety at work ("Official Gazette of Montenegro", no. 67 /05).

The exam consists of General and special parts.

The general part of the professional examination candidate to be taken orally and includes knowledge of:

- legal planning of occupational safety,
- health care employees,
- pension and disability insurance,
- labor relations,
- risk assessments in the workplace,
- inspection and
- carrying out professional activities of occupational

The special place of the Professional exam consists of a written and an oral part.

The written part of the exam means preparation of written work in which the candidate is handled by the given topic from activities the employer, and an oral part includes a defense of a written work and practical check of knowledge of applied safety measures at work from the employer. Preparation of expert bases for performance:

- studies of the physical, chemical and biological hazard, brightness and microclimate in working environment,
- the examinations and tests of the work,
- risk assessment for occupational safety and
- theoretical and practical training of employees for safe work in accordance with
- the programme of training

Since June 2006, when it began its realization of taking the Professional exam for persons who are engaged in work on the exam is passed around 450 persons.

Professional, or administrative service performs the following tasks:

- 1) advised the employer in planning, choosing and maintaining assets and funds and equipment for personal safety and safety;
- 2) advises the employer by equipping and edits the workplace, taking into account the working environment and conditions;
- 3) participates in drafting technical bases for the assessment of risks;

- 4) organize preliminary and periodic testing of working environment conditions (chemical, physical and biological hazards, microclimate and illuminance level);
- 5) organize periodic examinations and testing resources for work, electrical and other installations;
- 6) propose measures for the improvement of working conditions, especially on jobs with special conditions of work, or to increased risks;
- 7) on all jobs by employer monitors the application of safety measures and maintenance of the assets and funds and equipment for personal safety and safety in working order;
- 8) provides instructions for safe operation and control of their application;
- 9) tracks the situation in relation to injuries at work and occupational diseases, as well as diseases related to work, participate in determining their causes and prepares reports with suggestions of measures for the employer;
- 10) prepares and participates in the training of employees for safe work;
- 11) proposes a measure prohibiting work on the workplace or the use of the funds for the work, in case when determining the immediate danger to the life or health of the employee, which shall immediately inform the employer and employee representatives;
- 12) immediately cooperate and coordinate on all issues in the field of safety and health at work with an authorized institution for health care employees;
- 13) water and the records of safety and health at work;
- 14) other tasks that determine employer..

In the case when the employer allow further work and in addition to professional measures taken due to notify the inspection work.

The employer is obliged to provide professional entities independently and autonomously performing activities in accordance with this law, as well as access to all the information relevant to the safety of health at work.

The employer is bound to professional persons who were with him working and professional services provides development expertise.

Professional entities are directly responsible to the employer and are not allowed to be brought into disadvantage because of their activities related to the safety of health at work.

The employer is obliged to provide professional person proper leave of absence from work, with fee income and to provide all necessary resources for conducting about safety and health at work.

Professional person, prior to deployment on these jobs, is due to pass the professional exam for persons who are engaged in safety of health at work.

Individuals who are on business in the field of safety and health at work spent at least five years are not required to take the exam, if:

- have completed Faculty on safety at work;
- scientific level of master's degree and doctor of technical sciences;
- the occupational medicine specialists;
- the inspectors who carry out monitoring of safety at work.

Conditions, the program and the method of taking the Professional exam for professional prescribes an organ of State administration responsible for labour affairs.

3.4 Other agencies or institutions to harmonise

Beside the Ministry of Labour and Social Welfare which carries out creating and managing policy of safety and health at work, state authorities dealing with the harmonisation and implementation of safety and health at work legislation are: the Ministry of Tourism and Sustainable Development in the area of safety of ionizing and non-

ionizing radiation, their compliance with the conditions for doing business in the catering and construction, the Ministry of Transportation in the area of jurisdiction of the safety of navigation, road, air and rail transport, Ministry of Economy in the area of harmonization of regulations governing mining activities, the directive "new" access and safety products, the Ministry of Defence for regulations related to the military of Montenegro, and in terms of the implementation of regulations, Administration For Inspection Affairs is an umbrella institution.

The role and functioning of the judiciary in connection with OSH

In case of violation of Law, Labour inspector for safety and health at work is taking administrative measures and actions in accordance with the Law on inspection control. If an order of Inspector was not performed or the party regrets the omissions in the work of the inspector or on the factual situation may bring an appeal to the second-instance authority or by the competent court.

In accordance with the Law on the safety of health at work and the employer shall, at the request of the competent inspector, provide a report on the state of safety and health at work of employees, as well as the measures conducted in this field with the employer. The employer shall immediately and not later than 24 hours from onset, report in writing to the Labour Inspectorate on every death, collective, serious and other injury at work resulting in employee's absence from work for more than three days, and dangerous phenomena that could jeopardize the safety and health of employees.

The employer is obliged to issue to injured employee and the medical facility where the medical examination of the employee was taken, a report of the injury of the employee at work, in deadline and on a form prescribed by the act of the state authority responsible for health. In the carrying out of inspection, the inspector in the field of safety and health at work, in addition to the duties and powers defined by law, shall have the obligation and authority to conduct the investigation of serious, collective and fatal injuries at work.

Beside investigation by the Labour inspector for safety and health at work, Police administration carry out investigation from its jurisdiction, coming on the scene immediately after the knowledge of adverse event (information derived from employer, police officers who cover a specific area or from employees of emergency services), and the information passed to the Labour inspection and to the State prosecutor. State prosecutor's office can enlist and forensic experts for safety of health at work and some other professions, depending on the areas affected by the damaging event.

After gathering the necessary documentation State prosecutor can evaluate if there will be criminal offences to initiate criminal prosecution or proceedings before the competent court. Such action can trigger and officials of the Police administration or Labour inspector for safety and health at work

3.5 National consultative organs OSH

Ministry of Labour and Social Welfare which carries out creating and managing policy of safety and health at work and providing opinions on legal solutions in this area, and other State administration, dealing with the harmonisation and implementation of regulations of the safety and health of the the work. The Ministry of Labour and Social Welfare carries out cooperation with the administration of local government in the development of services for which there is a need in municipalities; cooperation with the Red Cross, non-governmental organizations, agencies of the United Nations and other international organizations; administrative procedure within the competence of the Ministry; keeping the Register General and branch collective agreements, trade union organizations registry, registry of representative trade unions and employers' associations registry representative organizations; authorization for conducting activities in the area of safety at work and keeping the register issued authorisations; recognition of foreign certificates in the non-formal and informal education with the guidance of the central registry; issuance of licenses and keeping the register of licensed dozen social and children's safety, administrative supervision in areas for which the Department established; as well as other tasks that are specific to the jurisdiction. Administration for inspection Affairs issues carries out tasks relating to inspection in various areas, including in the field of safety and health at work, but is responsible for preparing information materials with the suggestions for taking measures of importance for improving the the situation in certain areas of control; providing technical and other assistance in connection with doing surveillance; giving information, announcements and information to authorities about the results of supervision; tutoring, expert opinions and explanations concerning the application of regulations over which supervision; keeping records of the inspection reviews; the drafting and submission of required reports; cooperation with the State administration, other State authorities and bodies of local self-government; cooperation with international organisations and institutions and organs of other States who carry out inspection tasks; publishing newsletters, brochures and other technical literature; as well as other tasks that are specific to the jurisdiction.

An advisory function in accordance with the law on safety and health at work have authorized organizations for safety and health at work, an authorized organization for healthcare employees, as well as a non-governmental organization Safety at Work Association of Montenegro .

3.6 Insurance scheme occupational accidents and diseases (compensation of employees)



3.7 Information about OSH

Safety and health at work is ensured and implemented using modern technological, organizational, medical, social and other measures and means of protection in accordance with the Law on safety and health at work, other regulations, ratified and published international treaties through the harmonization of normative acts with the provisions of the Law on OSH, provision of examinations and examination of the work equipment and testing of working conditions within the prescribed deadlines, training of employees for safe work, provision of specialist

medical examinations of employees working in places with special working conditions, ie increased risk, organization of occupational health and safety at work with the employer, occupational safety and health records, procurement, issuance and provision of personal protective equipment and equipment, collective insurance of employees, taking necessary measures and assigning employees to provide first aid, fire protection and evacuation of employees and issuing a risk assessment act.

3.8 Specialized technical, medical and scientific institutions related to various aspects of OSH

In accordance with the Law on the safety of health at work, the employer is obliged to organize and perform expert tasks depending on the organization, the nature and scope of the work process, the number of employees who participate in the process of operation, the number of work shifts, the estimated risk of a number of separate units and location, so you can:

- determine the professional person;
- organizing professional services for safety and health at work;
- hire a legal entity or entrepreneur who has authorization to carry out professional activities.

In case you cannot determine professional person or organized professional service, hire a legal entity or entrepreneur who has authorization to carry out professional activities (authorized organization for safety and health at work). It jobs:

1. advise the employer in the planning, selection and maintenance of work equipment and personal safety equipment;
2. advise the employer on furnishing and equipping the workplace, taking into account the conditions of the working environment;
3. participate in the development of professional foundations for an act on risk assessment;
4. organize preliminary and periodic testing of the working environment (chemical, physical and biological substances, microclimate and lighting);
5. organize periodic inspection and testing of work equipment, electrical and other installations;
6. propose measures to improve working conditions, particularly in workplaces with special conditions and increased risks;
7. monitor the implementation of the safety and health at work measures and maintenance of work equipment and personal safety equipment in good working condition at all jobs with the employer;
8. provide guidance for the safe and healthy operation and control their implementation;
9. monitor the situation in relation to industrial accidents and occupational diseases as well as diseases related to work, participate in determining their causes and prepare reports with suggested measures for the employer;
10. prepare and participate in the training of employees for safe and healthy work;
11. propose a ban in the workplace or use of work equipment, if they establish an immediate danger to the life or health of the employee, of which to immediately inform the employer and employees' representative;
12. cooperate, consult and coordinate directly all issues related to safety and health at work with authorized institution for health protection of employees;
13. keep and take care of the records of safety and health at work;
14. perform other tasks assigned by the employer.

Expert work can perform a legal entity and an entrepreneur, which meets the requirements in terms of staff, organization, technical and other conditions prescribed by the organs of State administration responsible for labour affairs.

Request with the necessary documentation to obtain authority for safety and health at work, a legal person or sole proprietor submits to the authority of State administration responsible for labour affairs.

Fulfillment of prescribed conditions for safety and health at work identifies the authority of State administration responsible for labour affairs.

An organ of State administration responsible for Labour Affairs decision authorizes legal entities or entrepreneurs that can perform specific jobs and safety of health at work.

The decision shall be issued for a term of three years and may be renewed under the same conditions. About issued administrative solutions the authority having jurisdiction for labour affairs leads register. Authorized organizations shall bear the actual costs incurred in the process of determining compliance with the prescribed conditions for safety and health at work.

The height of the cost determined by the authority of State administration responsible for Labour Affairs

Other professional activities include:

1. preparation of the risk assessment act with the proposed measures for their elimination;
2. periodic inspection and testing of work equipment, electrical and other installations and facilities and equipment for personal safety;
3. examination of the working conditions (chemical, physical and biological substances, lighting and microclimate);
4. audit (assessment) of technical documentation in terms of applicability of safety and health at work measures, technical regulations and standards, establishing provision of protection to employees in facilities for which technical documentation was developed, for the work processes to be performed by them;
5. training of employees for safe work;
6. and other tasks.

In Montenegro, professional jobs and safety of health at work carried out 38 authorized organization.

Government authority responsible for public health, with the prior approval of the administrative body in charge of labour affairs shall prescribe and issue the authorization to legal person registered in accordance with law, if fulfilling the necessary personnel, organizational, technical and other requirements, especially to perform the following tasks:

1. participate in the risk assessment at work places and working environment and the preparation of documents on risk assessment;
2. inform employees about the health risks associated with their work and provide the health education to employees;
3. determine and examine the causes of occupational and work-related diseases;
4. evaluate and determine the specific health conditions that must be met by an employee to perform certain tasks in the workplace, in the work process or in the use or handling of certain work equipment;
5. carry out preliminary and periodic medical examinations of employees in accordance with safety and health at work regulations;
6. issue a report on the medical examination on the fulfilment of health conditions in the workplace with increased risk;
7. implement health protection of employees with occupational diseases;
8. organize first aid, rescue and evacuation in case of employee's injury or damages;
9. determine the cause of the disability of employees and suggest remedial action, participate in the vocational rehabilitation and provide advice on the selection of another adequate job based on the remaining working capacity;
10. propose the employer measures to improve the health of employees, especially those at high risk of injuries or damage to health;
11. advise employers on the selection and testing of new work equipment and personal protective equipment in terms of health protection of the personnel;

12. participate in the analysis of occupational accidents, occupational and work-related diseases, and keep adequate records;
13. cooperate, consult and coordinate on issues of safety and health at work, with a qualified person or professional services.
14. and other jobs.

Data collected in connection with the employee's health examination are confidential in nature and are under the supervision of authorized institutions for health care employees, or the selected doctor who keeps records of medical examinations. Data may be supplied to other entities only with the written consent of the employee. Report on the medical examination of an employee on health capacity to perform specific activities shall be submitted to the employer in a way that does not infringe on the principle of confidentiality of personal data. The authority for doing business is issued on the basis of Regulation on closer terms to fulfill a legal entity to perform health care employees ("Official Gazette of Montenegro", no. 60/16), and health check-ups are made in accordance with the The regulations on the type of mode volume and deadlines for performing the medical examination of employees in workplaces with special conditions of work or with increased risk ("Official Gazette of Montenegro", Nr. 43/17) and in the regulations on the content of specific measures health care employees ("Official Gazette of the Republic of Montenegro", no. 44/06)

In Montenegro there are Regulation on establishing professional diseases ("Official Gazette of the Republic of Montenegro", no. 66/04, which contains a list of 56 Professional disease, but Unfortunately there is no register of occupational diseases, the same recognition procedures is very complicated and employed to refer to the referent institutions out of Montenegro. In total there are 25 authorized institutions for health care employees and 17 public health facilities (health centers) and eight private medical institutions.

Do research, studying and designing the appropriate methods in the field of safety at work, achieving safety working conditions, preserving and improving the quality of working and living environment, the Government of the Republic of Montenegro on the session of December 7. of 2000. and the Senate of the University of Montenegro, at the session of October 20. of 2000. made the decision on establishment of the Institute for development and research in the field of safety at work

The activity of the Institute is:

1. design methods and models for solving practical problems in connection with the implementation of the measures and procedures for workplace safety;
2. monitoring of scientific achievements in the field of safety at work;
3. the survey appearance to match technical-technological processes with the needs of sustainable development in the Republic;
4. achieving the functional links between scientific institutions and economy;
5. research in order to launch new and activation of existing technical and technological potential;
6. creating method and program of safety of devastation as a result of industrial and infrastructure of technical and technological processes;
7. initiate change and innovation of technical regulations and standards in accordance with the norms and standards of the developed countries;
8. elaboration of expert bases for curricula and plans for training and development of personnel in the field of safety at work;
9. monitoring and study of safety conditions and safety and healthy working environment;
10. research risks in terms of preventing the occurrence of workplace accidents and professional diseases;
11. elaboration of expert analyses in the area of safety at work;
12. research and development of appropriate programmes for the needs of the founders;
13. elaboration of methodology and programs to identify jobs with special conditions of work and the required work seniority.

3.8.1 University courses from OSH at faculties

The Law on safety and health at work mandates that the upbringing and education in the field of safety and health at work is an integral part of the General and professional training for all types and degrees of education employees, but at all levels of the educational system, safety and health at work there is only as a chapter, but does not exist as a separate subject..

3.8.2. Research departments and institutions that are conducting studies for OSH and research.

During the 2013 under the Ministry of Labour and Social Welfare, in the organizational units of the Labour Directorate, established the Direction for safety and health at work. In this Direction are jobs relating to: monitoring, study and encourage the development of health and safety; the preparation of regulations in the field of health and safety; monitoring and implementation of multilateral environmental agreements conventions and EU directives in the field of health and safety; activities relating to negotiations on the accession of Montenegro the EU by chapters in the field of safety at work; giving opinions about the application of legislation in the area of safety at work; preparation of a technical basis for the development of national programmes for the development of occupational safety and monitoring its exercise; monitoring and assessment of occupational safety and preparing positions for a unique arrangement of work safety measures that are regulated by regulations in the area of safety at work; providing expert assistance in the area of health and safety of employees; preparation of a methodology for conducting reviews and studies in the field of safety at work; collecting and analyzing data about injuries at work, occupational diseases and work-related diseases; organizing and taking the professional exam for obtaining the title of professional persons to perform jobs and safety; processing of materials and preparation of approval for work authorized organizations for work safety at work that its activities are conducted for the approval of this Ministry; keeping registers of authorized organizations that perform activities for the approval of this Ministry and supervision over their work; keeping registers of persons who have passed the Professional exam for obtaining the title of professional persons in the organisation of this Ministry; preparation of information, reports and analysis in the field of occupational safety, processing and documentation of materials; perform information-documentation activities in the field of the safety of employees; encouraging education and culture development work in the area of safety at work, training of employees, employers, professional persons that deal with matters of occupational safety, inspectors and others; informing the public about safety at work; achieving cooperation with NGO's

In Montenegro there are Regulation on establishing professional diseases ("Official Gazette of the Republic of Montenegro", no. 66/04, which contains a list of 56 Professional disease, but Unfortunately there is no register of occupational diseases, the same recognition procedures is very complicated and employed to refer to the referent institutions out of Montenegro. In total there are 25 authorized institutions for health care employees and 17 public health facilities (health centers) and eight private medical institutions.

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2. monitoring of scientific achievements in the field of safety at work;
3. the survey appearance to match technical-technological processes with the needs of sustainable development in the Republic;
4. achieving the functional links between scientific institutions and economy;
5. research in order to launch new and activation of existing technical and technological potential;
6. creating method and program of safety of devastation as a result of industrial and infrastructure of technical and technological processes;

7. initiate change and innovation of technical regulations and standards in accordance with the norms and standards of the developed countries;
8. elaboration of expert bases for curricula and plans for training and development of personnel in the field of safety at work;
9. monitoring and study of safety conditions and safety and healthy working environment;
10. research risks in terms of preventing the occurrence of workplace accidents and professional diseases;
11. elaboration of expert analyses in the area of safety at work;
12. research and development of appropriate programmes for the needs of the founders;
13. elaboration of methodology and programs to identify jobs with special conditions of work and the required work seniority.

3.8.3 Institutions that are conducting training in accordance with legal requirements

Professional training and verification capacities for safe operation of employees can perform a legal entity and an entrepreneur, which meets the requirements in terms of staff, organization, technical and other conditions prescribed by State administration responsible for Labour Affairs. The authority is issued on the basis of the regulations on the conditions must meet the legal or natural person to perform professional activities in occupational safety and on the procedure for determining compliance with these conditions ("Official Gazette of Montenegro", no. 67/05), and training and checking the competence of employees for safe work is done on the basis of the Regulation on the method and procedures for training employees in safe work ("Official Gazette of Montenegro", no. 57/06). Such authorized organization in Montenegro has a total of 13.

Employment service of Montenegro is concerned with education and training and financing the total cost of the implementation of education and training of adults, for increasing the employability of unemployed persons by acquiring knowledge, skills and competences necessary for performing a specific profession.

ZOPT based in Podgorica, founded in 2006. in order to perform a program of adult education, vocational rehabilitation, active employment policies, social inclusion programs and other programs for adults.

Programs that are implementing are: young, adult, older, employed, unemployed and long-term unemployed persons, persons with disabilities, for all those who lack knowledge, skills, competence or qualifications, in order to successfully included in the labour market, employment, retain existing job or advance in their careers.

In the ZOPT – and, as separate organizational units, operate: Center for education and training and the Center for professional rehabilitation of persons with disabilities, which his work performed through the business centers in several towns of Montenegro.

ZOPT - Centre for education and training

By the decision of the Ministry of education and science of Montenegro, Center for education and training is a licensed adult education organiser to run programs of adult education.

ZOPT – Center for professional rehabilitation

According to the Ministry of Labour and Social Welfare of Montenegro established the Center for professional rehabilitation of persons with disabilities to meet the conditions for the operation of facilities for organising and performing Professional rehabilitation of persons with disabilities.

Work center, as a form of work with persons with disabilities, was founded in Herceg Novi, for the purpose of employment and work-therapeutic activities for these individuals.

The basic advantages of ZOPT-a rich experience of managers ' team in adult learning, innovative methods and flexible access to an adult, working in small groups, technical equipment and audio-visual means, cooperation with the institutions in the system area education, successful cooperation with organisations, businesses and individuals, experienced team of fixed and external professional colleagues, different educational profiles.

The activity of ZOPT-and includes:

- Realization of adult education/training and acquiring key skill;
- Realization of professional rehabilitation of persons with disabilities;
- Implementation of active employment policies for employability prospects more difficult;
- Realization and development of social inclusion, social entrepreneurship;
- Development, promotion and implementation of the program art and hobby craft;
- Research of educational need for employment persons and the labour market;
- Management system of quality ISO 9001/2008;
- Development of new processes and programs of adult education;
- Development and realization of projects.

3.8.4 Institutions and laboratories specialized in risk assessment (chemical safety, toxicology, epidemiology, product safety, etc.)

Professional jobs creation Act on risk assessment, suggesting measures for their elimination can perform a legal entity and an entrepreneur, which meets the requirements in terms of staff, organization, technical and other conditions prescribed by the competent authority of the State administration for Labour Affairs. The authority is issued on the basis of the regulations on the conditions must meet the legal or natural person to perform professional activities in occupational safety and on the procedure for determining compliance with these conditions ("Official Gazette of Montenegro", no. 67/05), and jobs creation Act of assessing risk, suggesting measures for their elimination is performed based on the Regulation on the method and procedure of risk assessment in the workplace ("Official Gazette of Montenegro", no. 43/07). Such authorized organization in Montenegro has a total of 13.

Centre for ecotoxicological studies of Montenegro is the reference institution whose activities:

- monitors and controls the implementation of professional methodological prevention programs of interest for Montenegro and to this end coordinates and directs the work of all health care institutions in the territory of Montenegro;
- monitors, investigates and analyses the epidemiological situation of infectious and non-infectious diseases of greater socio-medical significance, suggests, organizes and carries out preventive measures/medical safety;
- professional methodological coordinates and directs the professional work of health institutions that perform hygienic-epidemiological services, and other areas of the activities of the Institute;
- proposing and implementing measures concerning the safety of control of foodstuffs and objects of general use, sanitary control of water for drinking, surface and waste water;
- monitors, analyzes and assesses the impact of the quality of the environment (air, land and noise) on the health status of the population;
- collects and processes prescribed health-statistics; conducts statistical surveys in the field of health for the purpose of monitoring and assessment of health status of the population and in the area of organization and operation of health services;
- water health records of interest to Montenegro;
- monitors and investigates the development and organization of the health system, for analysis of organizational problems, problems of health infrastructure and health resources;
- monitors and investigates the possibilities for improving the health information system;
- develop proposal human resources plans and other resources in health care, plans a profile specialization in health institutions whose founder Member;
- do monitoring work plans, health institutions, production and evaluation services plans and programmes for the development and monitors the quality of health care;
- participate in the preventive control of the designing and construction of the building and other structures and in

the drafting of spatial and urban plans from the point of view of safety and the improvement of living and working environment and the health of citizens;

- monitors, analyzes and evaluates the sanitary conditions and safety of the school and working environment;
- performed microbiological and parazitološke, chemical, biological, toxicological, biochemical and other laboratory analysis;
- planning, proposing and implementing measures for the preservation and improvement of health of the population, health-educational activities and through the media, particularly the marginal population group;
- monitors, studies, proposing, implementing and improving measures on family planning (reproductive health), maternal and child health, working active population and elderly persons;
- participates in the preparation and monitoring of standards and standards of health care resources, organizes education from public-health activities;
- implements classes for students of Faculty of health orientation; organizes and carries out scientific and research activity;
- establish and implement the necessary health measures in extraordinary circumstances (epidemics, natural disasters and catastrophes, war, ...);
- researching and developing activities in the field of public health, health policy, and creates programs of public health;
- supervision and control of the harmful biological agents (through disinfection, disinsection and deratisation) and chemical agents;
- prepares and publishes "Statistical Yearbooks, newsletters and other publications related to the activities of the Institute;

Scientific and research activities of the Institute shall be conducted in accordance with the law and is aimed in particular at: research in the field of public health activities, and research related to the promotion and development of health services. The Institute is a teaching base of medical school, which provides the terms and implement the plans and programs of the University of Montenegro, Faculty of medicine, in accordance with the law.

3.8.5 Agency for Standardization

In accordance with the Law on standardization, the decision on the establishment and the Statute, the Institute for Standardization of Montenegro carries out the following activities:

- preparation programs and annual plans for developing Montenegrin standards;
- establishes Infrastructure Advisory and technical bodies (technical committees) for performing Montenegrin standardization processes;
- make, develop, revise, change, amend and withdraw Montenegrin standards and related documents;
- keep the register and maintains a collection of Montenegrin standards and related documents;
- ensure the availability to the public of Montenegrin standards, related documents, publications, as well as standards and publications of the relevant European and international organisations and other countries and made their sale;
- establishes and maintains a database of standards and related documents;
- promote the application of Montenegrin standards and related documents;
- cooperates with management, technical, scientific and economic entities that are related to training, promotion and other activities in the field of standardization;
- provides a basis for the development of technical regulations;
- represents the interests of Montenegro in the field of standardization at international, European and regional organizations and bodies for Standardization;

- provides and coordinates the participation of Montenegrin representatives in the work of international and European organizations for Standardization;
- cooperate with national bodies for Standardization of other States;
- procure and maintain collections of standards and related documents that bring international and European organizations for Standardization, as well as major national and branch documents in the field of standardization;
- takes over as national standards, international and European standards on language used in the international and European organizations for Standardization;
- ensures compliance of Montenegrin standards and related documents with international and European standards and related documents;
- acts as a contact point (Contact point) in the procedures of notification and as an information centre (Enquiry point) of the WTO/TBT (Agreement on technical barriers to trade of the World Trade Organisation) in the area of standards and procedures associated with ratings compliance;
- acts as a contact point for Codex Alimentarius;
- approves the use of mark of conformity with Montenegrin standards and related documents in accordance with its Regulation;
- implemented a contract that is concluded between the Government of Montenegro as the founder of the Institute and for each business year, and regulating the rights and obligations of the founder and of the Institute in connection with a number of standards, related documents, as well as financial resources for that year, and that the by founding members provide for the work of the Institute;
- perform other tasks in the field of standardisation in accordance with the law, the decision on the establishment and the Statute.

3.8.6 Professional associations

Safety at Work Association of Montenegro (SWAM) was founded in 1998. as a voluntary, professional, non-governmental, humanitarian, non-profit and non-partisan organization of persons (experts) educated to develop activities to improve work safety and improve the working conditions and working environment. SWAM has: a President,

4 Vice Presidents and 9 different Commission for cooperation with international

organizations, employers' associations, trade unions, the media, and has a population of around 160 members.

SWAM works to:

- professional help in the preparation of regulation OSH,
- promotional OSH organization activities,
- Organization of seminars to prepare candidates for taking the Professional exam of OSH
- Organization of seminars for professional persons for OSH
- Organization of seminars for employers, trade unions...

SWAM works to:

- organized by the celebration of the world day and the European week and safety of health at work,
- Organization award of recognition in the field of OSH
- Organization of round tables,
- Promotion of OSH in companies ... (Telekom MONTENEGRO, Delta ...)

In 2014. SWAM has started a project with the Ministry of education of Montenegro in order to promote the OSH in education system of Montenegro.

SWAM became a member of BalcanOSH (network of organization which perform safety and health at work in

Balkan countries) and concluded a cooperation agreement with Macedonian Association for Safety and Health at Work, and in Montenegro with the Administration for inspection Affairs, Union of employers and Union of free trade unions of Montenegro. The same is expected and with other institutions in Montenegro and abroad.

Engineering Chamber of Montenegro - For the purpose of providing expertise and protect the public interest, persons who work in the field of spatial planning and construction of facilities, stipulated by this law, enroll in a Chamber in the area of spatial planning and construction of buildings. The Chamber has the status of a legal entity with rights and responsibilities established by law and the articles of Association of Commerce. The Statute regulates the organisation of Commerce Chambers, Rudd and the functioning of the Chamber organ, manner of election and powers, decision-making, and implementation of decisions and other issues relevant to the work of the Chamber. The Chamber of Commerce regulations concerning the public authority gives the consent the Ministry of sustainable development and tourism.

COMPETENCE OF THE CHAMBER

Chambers performs the following tasks:

1. keep the register of members of the Chamber;
2. the upgrading and provision of expertise of members of the Chamber;
3. adopt a code of ethics and of its implementation;
4. take disciplinary action against its members and States measures;
5. determines the minimum cost for the development of technical documentation, audit, technical overviews and monitoring for residential and residential and commercial buildings;
6. performs the control application of the price from 5 points;
7. organizes and carries out taking the Professional exam under this law;
8. specifies the membership fee and the fees of its members;
9. protects and represents the interests of members;
10. performs other duties on the basis of the law and of the articles of Association

Deals from PT. 5, 6 and 7 of the present article of Commerce is done as a public authority. Way of the controls referred to in paragraph 1 point 6 of this article shall prescribe the Chamber, with the approval of the Ministry of sustainable development and tourism that supervision over the performance of jobs from PT. 5, 6 and 7 of this.

3.9. Coordination and cooperation

The Ministry of Labour and Social Welfare in creating policies and promotional activities of safety and health at work, especially in the harmonization of legislation with the EU acquis incorporates all actors in this area. During of making proposals and draft laws and regulations members of working groups are by carrier deal from the Ministry of Labour and Social Welfare, present members of the Administration for inspection Affairs, other state administrations depending on the subject that is transferred to a legal system of Montenegro, and published and public call to incorporate non-governmental organizations. By making each individual act is appreciated opinion and expert public.

Promotional activities are always implemented in conjunction with the Administration for inspection Affairs, Department of Labour inspection which is the Focal Point of the European Agency for Safety and Health at Work, especially when it comes to implementing the campaigns that implements this agency, and active cooperation and coordination is carried out with the SWAM, the social partners and institutions in implementing their projects and program activities.

3.10. Situational analysis and recommendations

In the coming period, especially after the harmonization of regulations is expected to even closer cooperation, with

regard to the implementation of the same and raising public awareness. Joint action of all actors in the field of safety and health at work, sets the stage for healthy jobs. For the period 2008-2017, the number of workplace accidents in Montenegro is the joint efforts of all actors reduced to 51.79%. During 2017. the highest number of workplace accidents was in construction activities 39%, but that is a decrease of 43% compared to 2008. when the rate was 82%. Raising public awareness, coordination and collaboration of all stakeholders, prevention and providing a measure of safety and health at work, permanent introduction to modern solutions, installation and safety of health at work in juvenile education system of Montenegro, culture work and dialogue, sharing of experiences, training for safe operation of the recommendations for improvement in this area.

4 THE ROLE OF SOCIAL PARTNERS IN OSH

Social dialogue and the participation of the social partners through various forms of international and national activities represent a key factor of development in all areas, including in the field of safety and health at work. This cooperation is formalized through the social dialogue system in institutions, primarily through Social Council, through the participation of social partners in the negotiation process, in the working groups for the development of legislation, cooperation on the implementation of the programme objectives, a variety of campaigns, as well as through collective bargaining and the conclusion of collective agreements (General, branch and individual).

4.1 Programs for osh of social partners

4.1.1 Employers' Organizations

Union of Employers of Montenegro (MEF) the international employers' organization in Montenegro since 2005. Collaborates with the international work organization (ILO), whose principles and standards and operates, and is a member of:

- IOE International Organization of employers-
- BUSINESSEUROPE-European Employers' Association
- MEF is a member of the Social Council at the national level, and special activities realized in the process of forming local Social tips.

Co-founder of CEPOJAR (Center for employers of the Adriatic region).

Employers set up by the Association of business women and helped establish other employers' associations at the local level and granskom.

Formed a co-ordinating body for cooperation with the tax authorities, the administration of customs and the Ministry of economy, as well as the working body with the anti-corruption initiative.

Signer is a series of agreements and protocols of cooperation with a number of institutions and organizations, municipalities, academic units, companies and other entities in Montenegro.

Cooperates with numerous employers' organizations, international forums and bodies, as well as other actors at the international level. Agreements on cooperation signed with employers' organizations Slovenia (ZDS), Serbia (UPS), Croatia (HUP), Bosnia and Herzegovina (APBIH), Macedonia (CERM) and Albania (KOPSH), with trade union of industry and transport of the Czech Republic, Association "Italia Opera", Malta employers' Association ...

UPCG signed strategic initiatives of the United Nations for the UN Global Compact companies.

In order to preserve macroeconomic stability and correct business relations, UPGC is with the Government of Montenegro and trade union signed a Memorandum on social partnership in circumstances of activity of the global economic crisis.

Union employer actively participate in social dialogue and working groups for legislation on the safety of health and safety, campaigns, conferences, workshops, seminars, round tables for raising public awareness, organizing Awards good practice etc. Union of Employers' of Montenegro (MEF) was a partner in the ECBOHS project (European cooperation in the field of safety and safety at work) that is co-financed by the European Commission – Directorate General for enlargement under the IPA programme for socio-economic partnership", and which are implemented with the aim of implementing activities to strengthen the capacity of employers, employers' and union organizations on the effective implementation of the standards of safety and health at work at the sectoral, local and the national level as well as at the level of the company.

Montenegro Chamber of Economy (CEM) – Association of rich tradition, an independent, professional, creative, inventive and very authoritative, represents the interests of all businessmen do economic and overall development of the State of Montenegro.

Mission

Montenegro Chamber of Economy, for economic development that is the common mission of all its members, activity guides and realized through:

- representation of the general interest of the economy and all economic entities;
- enable enterprises to participate in the management of the economy and thus
- maintain their freedom;
- boosting production in the economy;
- presentation of business opportunities abroad;
- fostering business morals and customs.

Jurisdiction

The Chamber provides exercise and improving the common interests of its members, participate in making business-system and economic policy measures within the jurisdiction of the proposals by providing suggestions and opinions on specific issues of interest to business and development of a market economy;

- give opinion on proposals of laws and other regulations governing the tax system and economic policy measures;
- represents the common interests of its members before government bodies and carries out professional tasks that are assigned to it by the Government and State organs;
- provides technical assistance to members of the Chamber, especially in the areas of marketing, linking economy and science by introducing new technology;
- organize an information system for the needs of its members, runs information register of business, available capacities in certain branches of the economy and about their production programs;
- contributes to the development and promotion of entrepreneurship and its profitable;
- contributes to the strengthening of good business practices and business morale;
- contributes to combating monopoly position of economic entities and monopolitical tendency in the market;
- creates the conditions for arranging of economic entities and meetings, for the purpose of determining and taking joint positions and proposals, exchange of experience and establishment of business relationships;
- provides assistance to members in solving their disputes;
- perform other duties laid down by the Statute.

Jobs and tasks

- provides exercise and improving the common interests of its members;
- creates an environment for the development of a market economy;
- participates in preparation of accession and incorporation in the EU;
- helps members to work on the introduction of EU standards;
- works on education and education of personnel for the needs of the economy;
- provides information to its members to find potential partners on the international market and connecting with foreign partners;
- developing an information system and business association;
- organise activities in the field of economic relations with foreign countries on promotion of goods and services, economic propaganda, organizing trade fairs, developing foreign trade networks, implementation of foreign-trade transactions;
- inform the economic operators in connection with the services, the introduction of quality management system

and in connection with the implementation of QMS in the economy;

- provides assistance to members in resolving disputes through the courts who are educated in the Chamber as an independent organs which are independent in decision making.

Montenegro Business Alliance (MBA) the business association that brings together entrepreneurs, domestic and foreign investors. MBA was formed in September 2001. by ten companies from Montenegro. Since its inception in MBA works to promote the development of the private sector, citing the problems in the existing legislation, with the intention that through offered proposals contribute to the Elimination of existing barriers and improving the overall environment for business in Montenegro. Montenegro Business Alliance today brings together around 500 most successful enterprises in Montenegro

MBA Mission is to provide greater private sector influence on decision makers in Montenegro, to lobby for the interests of its members, to make their full contribution to the creation of better conditions for engaging business in Montenegro, to contribute to increasing employment and wealth. MBA is building a strategic partnership with everyone who wants to work on achieving the stated mission to achieve faster growth and development of the economy of Montenegro.

The objectives of MBA are

- advocacy for the interests of members of the mba
- development of entrepreneurship
- strengthening private sector
- provision of the participation of the private sector in adopting new legislation
- increase of employment
- participation in social dialogue
- increase investor confidence in montenegro
- private public partnership
- increasing wealth

4.1.2 Organization employees

Federation of trade unions of Montenegro (FTUM) is a member of the trade union movement in Europe and the world (AXE and the ICC) and uncompromisingly committed to the exercise of the inalienable rights of freedom and social justice.

The Union can not and should not serve any of its members. Membership, in turn, can not serve anyone who publicly or acts declared as an opponent not only of the trade union but of the world of work in general.

The FTUM is the only representative of the world of work and as such, whenever it is useful for the interests of not only membership, but also employees, concludes agreements and agreements with social partners in order to protect or enhance their interests in the partnership.

The FTUM builds social partnerships with the legislature and executive (Assembly and Government of Montenegro) as well as with employers who are the indispensable lever that, with the other lever, capital, triggers economic activity and brings prosperity to the whole society. If these levers break and collide, the whole society suffers.

The FTUM is a self-employed, independent, democratic, independent and voluntary organization of trade unions, organized in trade unions.

It's promotes the principles of social justice, the rule of law and democracy by respecting international standards, insisting on the ratification and application of the International Labor Organization (ILO) conventions and the European Social Charter, as well as respectful human and social rights.

The FTUM stands for the strengthening of community and solidarity among workers in Montenegro, Europe and the world, the prosperity of all workers regardless of nationality, gender of race and religion, peace, democratic

development and free trade union activity. For these goals, one can associate with other trade union associations in Montenegro, Europe and the world.

The Union, and its unions, are independent of employers, authorities, political parties and religious communities.

The purpose of the Union's organization and activities is to bring together unions in an effective whole and to represent common interests in all areas, particularly in the area of state, social and cultural policy.

The FTUM especially works:

- On the establishment and preservation of social and democratic legal State and its free and democratic social planning;
- The achievement and preservation of fundamental trade union rights and freedoms and the independence of the trade union movement;
- On the representation and safety of interests of employees at the national and the international, national, social and health policy, including environmental safety;
- In the politics of the labour market, employment and labour-social safety;
- On the legal safety of employees;
- In politics, gaining assets, State development planning;
- In cash-the financial and tax policy;
- In pricing, competition and consumer policy;
- In promoting national and international education policy, opportunities for
- continuing education and training to achieve the principle of equal opportunities,
- social justice and democratization of education;
- In promoting safety at work;
- In the social dialogue at all levels;
- Combating the informal economy and of all activities that leave employees without work status, rights and access to social safety programmes, etc;
- The rights to conduct campaigns, lobbying and raise awareness about all matters relating to employment and Union membership (protests, demonstrations, boycotts and strikes);
- To strengthen collaboration with civil society organizations, when they can contribute to greater influence of unions and civil society on the position of employees;
- Calls for international solidarity in participation in International Union actions and campaigns.

Union operates according to the principles of:

- The right of employees to organize;
- Voluntary membership and resigning from trade union;
- Voluntary accession and resigning from trade union;
- Self determination and adoption program, selecting human resources and methods of trade union struggles, and financial autonomy;
- Workers ' solidarity;
- The public performance of bodies and responsibilities towards official bodies;
- Building fundamental attitudes and interests of members of the branch trade unions, and the decision-making majority decision-making, taking into consideration minority interests;
- Peaceful resolution of conflicts between trade unions, other private, conciliation and mediation.

Union in the activities described above, acts on the basis of Programmatic orientation that is defined at the Congress

of trade union.

Union of free trade unions of Montenegro (FFTUM) is a voluntary interest organization employees, based on democratic principles and independent of political, ethnic and religious organizations.

MISSION

FFTUM's mission is to build Montenegro as a State of social justice and social well-being for all its citizens.

FFTUM is a full member of:

- The European Confederation of trade unions
- The International Confederation of trade unions
- The regional Union Solidarity Council

4.2 Participation at the national, sectoral and enterprise

Collective bargaining is a collective right of employment and a process that leads to the conclusion of collective agreements, or their modification and amendment.

Collective agreements represent the most important autonomous sources of The Labour law and occupational sources of law. Collective bargaining agreement as a general legal act of the specific legal nature it is concluded in writing between employers or employers' representative associations, on the one hand, and representative trade unions or federated representative trade unions, on the other side, and which, in accordance with the law and regulations governing the rights, obligations and responsibilities of the employment relationship, the amendment of the collective agreement, mutual relations of participants of the collective agreement and other matters relevant to the employees and employers.

At the national level Social Council was set up to establish and develop social dialogue on issues of importance for achieving the economic and social position of employees and employers and their conditions of life and work, the development of a culture of dialogue, encouraging the peaceful resolution of individual and collective labour disputes and other issues arising from international documents, which relate to the economic and social position of employees and employers.

Social Council is based on tripartite basis, and make it representatives of the: Government of Montenegro, or the competent authority of the municipality, the capital and the Old Royal capital, representatives of the representative of trade union organisations and representative associations of employers.

Social Council considers and takes positions on issues: development and promotion of collective bargaining, the impact of economic policies and measures for its implementation of the social development and stability of employment, earnings and price; competition and productivity; privatisation and other structural adjustment issues; safety of labour and environmental safety, education and professional training; health and social safety and safety; demographic trends and other issues relevant to achieving and promoting economic and social policies.

At the sectoral level representatives Union branches and representatives of the Government of Montenegro collectively negotiate and conclude collective agreements subject matter with the law and the general collective agreement, governing individual rights and obligations of employees in the branch of activity and the rights and obligations of employers towards employees, as well as mutual rights and obligations of the parties, until the collective bargaining agreement at the level of the enterprises conclude representatives of the employer and representatives of the representative trade unions at the company level.

4.2.1 Participation in national tripartite committees for OSH

At the national level, Montenegro has not established a National Council or Committee for safety and health at work, but on the Social Council debating the important issues in this area. At the meeting of the Council held Social day 28.09.2011. are formed seven sections of the Social Council, namely: Section for work, Social Affairs and gender equality, the sections on employment, workforce development and harmonization with the labour market,

a section for privatisation and the competitiveness of the economy, the economy and Finance Section, Section for international relations and EU accession of Montenegro, the section for the current regional development and support of development of small and medium-sized enterprises and Section for safety and health at work.

4.2.2 Bipartite committees

Bipartite negotiations are taking place at the branch level and at the individual collective agreements (in those cases where the State appears as the founder). The law on safety and health at work not a prescribed obligation forming the Council or the Committee for the safety and health at work, collective bargaining takes place at the level of sectors or industries that can result in the conclusion of the branch collective the contract.

4.2.3 Participation at the level of enterprises

Related to the Law on safety and health at work, the employer is obliged to inform employees or employers' representative for safety and health at work in writing about:

- Risks related to the safety and health at work, prevention, safety and health at work measures, and activities in relation to each type of workstation and/or job;
- The manner of organization and provision of first aid, fire-fighting, evacuation procedure for employees in cases of serious and immediate danger and the persons responsible for implementing these measures.

The employer is obliged to adequately inform other employer whose employees he hired to work for him on any grounds, about the issues specified in paragraph 1 of this Article, and the persons responsible for their implementation.

The employer is obliged to inform the employees' representative for safety and health at work on rights and obligations relating to the Safety and health at work, and also allow him access to:

- Risk assessment, prevention and safety and health at work measures, including the risks faced by a group of employees who are exposed to particular risks;
- Decisions on safety and health at work measures to be taken, and if necessary, on personal safety equipment to be used;
- Records and reports on occupational injuries resulting in the employee's absence from work for more than three working days;
- Reports on accidents at work of its employees;
- Data arising from the measures and actions of inspection and other bodies responsible for the protection and health at work

The employer, employee, employees' representative and trade union shall cooperate and consult each other in determining their rights, obligations and responsibilities pertaining to the Safety and health at work in accordance with this law, particularly in relation to:

- any measure that could significantly affect the Safety and health at work;
- listing qualified person for the Safety and health at work (hereinafter referred to a qualified person), by assigning person responsible for the implementation of first aid, firefighting and evacuation of employees and activities in relation to Safety and health at work;
- data on the risk assessment and safety and health at work measures, including risks faced by a group of employees who are exposed to particular risks;
- decisions on safety and health at work measures to be taken, and if necessary, on the personal safety equipment to be used;
- records and reports on occupational injuries resulting in the absence of employee from work for more than three working days;
- reports on accidents at work of its employees;

- measures and actions of inspections and other authorities responsible for the safety and health at work;
- hiring legal entity or entrepreneur for professional jobs;
- planning and organizing training of employees and verification of capacities for the safety and health at work.

The employer shall enable employees' representative and trade union to send their remarks concerning the Safety and health at work to the competent inspector in the exercise of the inspection control.

4.3. OSH in collective bargaining

With collective bargaining in OSH is represented at all levels of negotiation so that this area further standardized in General, Branch collective agreement, collective agreement with the employer, or labour contract. In the General collective agreement is required:

- The employee belongs to salary compensation for time away from work in the amount of 100% of his salary, per hour, as he was at work while refusing to work when not implemented the prescribed safety measures at work;
- Minor injuries the obligation are not proceeding in accordance with the regulations on safety at work;
- In addition to the reasons set out by the law, an employer may terminate an employment contract the employee, if violated regulations on safety at work and thus caused the danger to their own or health of other employees, or the heavier injuries at work, occupational disease or diseases in connection with the work;
- The employer is obliged to annually inform trade union at the appropriate level of tracked injuries at work and the safety measures and safety at work;

Branch collective agreement, collective agreement with the employer, the employer's General Act and employment contract cannot be determined less rights than the rights set forth in this collective agreement.

4.4 Summary

4.4.1. A summary of the responsibilities of the individual employers

When it comes to collective bargaining, information and collaboration with employees, employee's representative and Trade Union representative employer is in compliance with the Law on safety and health responsible if:

- do not inform the employee or representative of employees in writing on issues relating to the safety and health at work, or they do not provide access to information that is relevant for the safety of health at work;
- co-operates with employee, representative of employees, and trade union is in the process of establishing rights, obligations and responsibilities relating to safety and health at work;
- employees, or the employees' representatives led to a less favourable position for performing jobs and safety of health at work;
- do not allow proper leave of absence from work, with fee income as it is on paper and does not provide all the necessary resources for conducting about safety and health at work;

4.4.2 A summary of the rights and obligations of employees

An employee has the right and obligation to meet before you start working with safety measures in the work place to which it is distributed, as well as to enable for their implementation.

An employee has the right and obligation to the employer gives suggestions, remarks and announcements regarding issues of safety and health at work.

An employee has the right and obligation to conduct a medical examination that matches at risk for safety and health at work, to which it refers the employer, in accordance with the regulations on safety and health at work and regulations in the field of health care.

An employee has the right to refuse to work, if:

- was not previously aware of all dangers or disease, i.e. risks at work or if the employer has provided the prescribed medical examination;
- threatened with imminent danger to life and health because they are not implemented the prescribed safety measures, as long as these measures are not their;
- the asset for work are not secure proper safeguards and that he endangered the life and health..

When an employee refuses to work shall be in writing addressed to the employer works taking measures which, in the opinion of the employee are not implemented.

When an employee refuses to work, the employer believes that the employee's request is justified, the employer is obliged to immediately notify the inspection work.

In case of serious and immediate danger to life and health, the employee can take the appropriate measures in accordance with their knowledge and the technical means at his disposal, and in the case of inevitable danger has the right to leave dangerous working area, production process, or the working environment.

In cases of serious and immediate danger to life and health of the employees should be brought to the less favorable position because of the damage that could result in his activities, unless he acted carelessly or recklessly

An employee is obliged to comply with the qualifications guidelines and that comes from the employer:

- While applying the prescribed safety measures, take care of your health and safety and on the work of other employees affected by their operations or procedures when performing work, dedicated funding for work, hazardous materials, resources and personal equipment safety equipment and protective devices, co-operate with the employer and professional face to implement the prescribed safety measures on business where he works;
- in accordance with its findings, immediately notify the employer, written or orally, or through representatives of employees of irregularities, defects, štetnostima, hazards or other appearance which would in the workplace could jeopardise his or safety and health other employees;
- cooperate with the employer and professional while the employer does not provide safe conditions for work.

If the employer, after the obtained readouts, rectified anomalies, weaknesses, hazards or other phenomena within three days, or if an employee believes that to solve the identified phenomena are not implemented appropriate safeguards, may request intervention Inspection of work and to notify the professional face.

The employee's obligations relating to the safety of health at work does not affect the principle of the responsibility of the employer.

The employees liable in case of non-compliance with the prescribed safety measures and non-performance of an obligation established by law and acts of the employer. General collective agreement requires that in addition to the reasons set out by the law, an employer may terminate an employment contract the employee, if violated regulations on safety at work and thus caused the danger to their own or health of other employees, or tougher injuries at work, occupational disease or diseases related to work.

4.4.3 A summary of the rights and responsibilities of representatives of OSH

Employer, employee, representative of employees, and trade union are obliged to cooperate in the process of establishing their respective rights, obligations and responsibilities relating to safety and health at work in accordance with the law. The employer is obliged to provide appropriate staff representative forms of training that is carried out during business hours at or beyond the employer

Employees, or the employees' representatives are not allowed to be brought in less favourable position for performing jobs and safety of health at work.

The employer is obliged to provide the appropriate representative of the employees absence from work, with fee income as it is on paper and to provide all necessary resources for conducting about safety and health at work.

4.5 Situational analysis and recommendations

In the future, even more should work on improving social dialogue and collective bargaining. The amendments to the law on safety and health at work which was adopted at the session of the Government of Montenegro from 11.04.2018. at the insistence of Union of free trade unions of Montenegro article 26 of law amended: "Employees of the employer are entitled to elect one or more representatives of employees. The selection process, and the number of representatives of employees with the employer, as well as their relationship with trade union governs collective agreement. The employer is obliged to at least one representative of employees enable proper leave of absence from work for a period of at least five hours of work per month, for a fee and to provide all necessary resources for conducting about safety and health at work."

5. REGULAR AND ONGOING ACTIVITIES IN THE FIELD OF OSH

In Montenegro is from 2007. of establishment of cooperation and determination of Focal Point and is marked by a campaign of the European Agency for safety and health at work, Bilbao (Spain) through conferences and share promotional materials. It also marks and April 28. as World Safety Day.

In the framework of cooperation with TAIEX, and ILO are realized in various workshops, study visits and expert missions.

During 2012. and 2013. for a period of 21 months implemented the IPA 2009 project entitled "Harmonization and implementation of regulations in the surveillance area inspections and Inspection safety equipment with the EU acquis" through which they made 23 draft versions of regulations that harmonise with EU acquies-em, technically equipped labour inspections and developed information system which contains all relevant statistics relating to the activities of the Inspection work.

In the BalcanOSH network in late October 2017. Association of occupational safety is with the Ministry of Labour and Social Welfare and Safety Associations and occupational health from the region held the III regional conference titled: "Ive-safety for the 21ST century" in which participation takes 172 participants from Montenegro and region.

In the framework of the project the ESTA APPLICATION-Platform for employment and Social Affairs, which covers Albania, Bosnia and Herzegovina, Macedonia, Kosovo, Montenegro and Serbia in the period from 1.03. to 28.04.2018. conducted campaigns in building activity entitled: "PROTECT YOURSELF. PROTECT OTHERS "

Supranational level organise various seminars, training courses and meetings through various forms of cooperation on the subject of safety and health at work.

5.1 Promotional programs and activities osh

In the absence of funding failed action "safety at work – the path to business success" through which the Government, employers, Chamber of Commerce and the Federation of trade unions, good practice awards to individuals and companies.

Activity has started realization of the inclusion of items and safety of health at work into the education system of Montenegro.

In the next period's planned reinforcement of activities on the promotion and safety of health at work, primarily based on cooperation with the Ministry of Labour and Social Welfare , administration for inspection issues and Association of occupational.

5.2 International capacity building and technical cooperation activities that are directly related to osh

In Montenegro is from 2007. of establishment of cooperation and determination of Focal Point and is marked by a campaign of the European Agency for safety and health at work, Bilbao (Spain) through conferences and share promotional materials. It also marks and 28. April as world safety and health at work.

In the framework of cooperation with TAIEX, and MOR-om are realized in various workshops, study visits and expert missions.

During 2012. and 2013. for a period of 21 months implemented the IPA 2009 project entitled "Harmonization and implementation of regulations in the surveillance area inspections and Inspection safety equipment with the EU acquis" through which they made 23 draft versions of regulations that harmonise with EU acquis-em, technically equipped labour inspections and developed information system which contains all relevant statistics relating to the activities of the Labour Inspection.

Within the framework of the BalcanOSH network at the end of October 2017, the Association of Occupational Safety and Health was working with the Ministry of Labour and Social Welfare and the SWAM at the Regional III Conference entitled "Building OSH for the 21st Century", involving 172 participants from Montenegro and the region.

SWAM was successfully implemented activities related to Regional project BalcanOSH network (network of NGOS which deal with Affairs of safety and health at work), titled "Raising capacities and strengthening the role of regional civil organizations in improving working conditions through dialogue with public institutions ", project financed by European Union.

5.3 Situational analysis and recommendations

In the future we need the boost towards regional activities primarily connecting to the safety and health at work and as a result of such cooperation around the joint to orthopedic assistance for projects funded by international organizations, primarily The EU and the ILO

At the national level need more joint activities on the promotion and safety of health at work (seminars, workshops, training, roundtables, panel discussions) and achieve a better media coverage of such activities.

6 THE OUTCOMES OF SAFETY AND HEALTH AT WORK

Upbringing, education and the promotion and safety of health at work, is one of the greatest values of safety and health at work. Of the level of professional qualifications, as a theoretical and practical training requirements for safe operation of employees to the work process, will respect the process and consistency of application of safety measures and health and safety for safe operation.

The main goal of training of employees for safety work is an obligation of the employer to the employee in the course of training for safe work, meet with all kinds of danger in which it distributes and on specific safety measures and health at work, which are the necessary work to eliminate any risk of, or damage to health.

Employer is all about obligation to carry out training for safe work at the employee's employment, deployment to another position, the introduction of new technologies, the introduction of new or replacement of assets, changes in work process and redeployment of work After the thing that lasted longer than a year.

Training of employees adapting to new and changing risks, and if necessary, repeated at specific intervals in accordance with the programme of training in the safe operation of employees that employer.

The Law on safety and health at work mandates that employer training employees for safe work performed theoretical and practical. Verification of theoretical and practical training requirements for safe operation of employees an employer performs at the workplace. Training of employees adapting to new and changing risks, and if necessary, repeated at specific intervals in accordance with the program of training.

Introduction of employees with working conditions at the workplace hazards and safety measures and health at work shall be performed in the form of seminars, training or classes, to be employed as complete met and trained for safe work, depending on the specifics of the technological process and working process in General.

Employer, employee, representative of employees, and trade union are obliged to co- operate in the process of establishing their respective rights, obligations and responsibilities relating to safety and health at work in accordance with the law.

In the period 2011-2017, for safe work is 82,927 trained employees.

2011	8.901
2012	7.784
2013	9.518
2014	9.772
2015	13.819
2016	15.643
2017	17.490
TOTAL	82.927

Risk assessment

In order to reduce injuries at work, occupational diseases and work-related diseases, Tip the EU article 6 of Directive 89/391/EEC is committed to all its Member States and other countries recommendation to improve the level of safety and health at work risk assessment for all employees through determining the sources of hazards and safety measures and health and safety during all work activities. Respecting the framework of the Council Directive 89/391/EEC of 12. in June of 1989. on the introduction of measures to encourage improvements in safety and health of employees at work (OJ L No. 183. of 29.6.1989. p. 1), amended by Regulation (EC) No 1137/2008 of the European Parliament and of the Council of 22. in October of 2008., about how some acts using the procedure given in Article 251. The contract, the decision of the Council in 1999/468/ES concerning the regulatory process with a review of the regulatory process-Customize with exam-part one (OJ No. L 311 of 21.11.2008. p. 1.), the Parliament of Montenegro, has adopted the Law on the safety of the health and safety ("Official leaf CG ", number 34/14), and in the procedure are modifications and amendments thereto to conform with the Directive of the European

Parliament and of the Council 92/57/EEC of 24 June 1992 on the minimum requirements of the safety and health at work of temporary or movable construction sites.

New concept introduced by this law applies in addition to technical measures to protect and healthy on paper and on the introduction of components of health of employees, to extend the obligations and responsibilities of the relevant actors in the environment or the working environment in order to raising the level of safety and health at work, such as respect for the General principles of safety and health at work, risk assessment for all positions, determine the ways and measures for eliminating risk and provision of their implementation..

Analyzing data for the period 2007-2017, and taking into account the official figures, of MONSTAT in Montenegro has been operating 30 286 employers, made the 2,693 acts on the risk assessment, which means the 8.89% employers adopted an act on the risk assessment, covering 40,722 employed, which means that to 22.32% employees of Montenegro carried out a risk assessment of their jobs.

6.1 Recording and reporting of injuries and occupational diseases and work-related diseases

In accordance with the Law on the safety of health at work and the employer shall, at the request of the competent inspector, provide a report on the state of safety and health at work of employees, as well as the measures conducted in this field with the employer. The employer shall immediately and not later than 24 hours from onset, report in writing to the Labour Inspectorate on every death, collective, serious and other injury at work resulting in employee's absence from work for more than three days, and dangerous phenomena that could jeopardize the safety and health of employees.

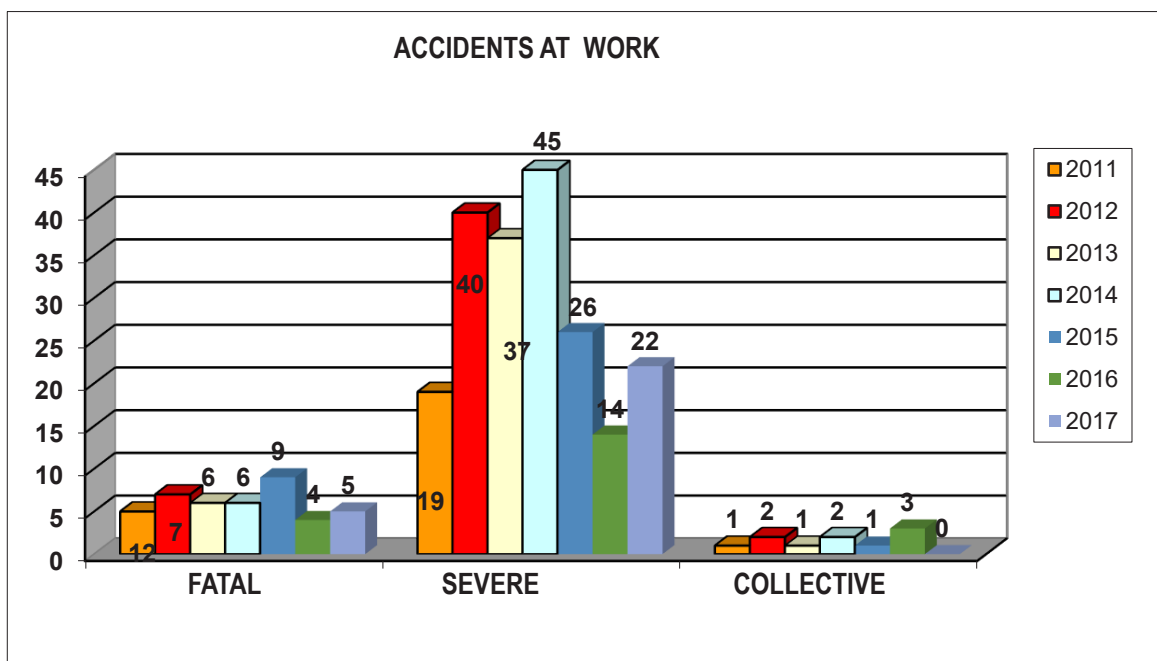
The employer is obliged to issue to injured employee and the medical facility where the medical examination of the employee was taken, a report of the injury of the employee at work, in deadline and on a form prescribed by the act of the state authority responsible for health. In the carrying out of inspection, the inspector in the field of safety and health at work, in addition to the duties and powers defined by law, shall have the obligation and authority to conduct the investigation of serious, collective and fatal injuries at work

The Fund for health insurance, pension and disability insurance Fund, authorized health institutions for health care employees and other medical institutions are obliged to in connection with the submission of data on occupational injuries, professional diseases, diseases related to work of the disabled, and work closely with the organ of State administration competent for work and to provide information on request and a month, and for each calendar year, not later than February 28. the following year.

6.2 Statistics relating to injuries, occupational diseases and work-related diseases

According to the data of the Administration for Inspection Affairs, the Department for Labor Inspection, the number of inspections carried out by the labor inspector in the area of occupational safety and health when dealing with injuries at work is given in the table.

Years	2011	2012	2013	2014	2015	2016	2017
Weight violations							
Fatal	5	7	6	6	9	4	5
Severe	19	40	37	45	26	14	22
Collective	1	2	1	2	1	3	0
TOTAL	25	49	44	53	36	21	27



For the period 2008-2017, the number of workplace accidents decreased to 51.79%

During 2017, the highest number of workplace accidents was in construction activities 39%, but that is a decrease of 43% compared to 2008, when the rate was 82%.

Unregistered data on occupational injuries, occupational diseases, work-related illnesses and work-related disabilities can not be equated with their absence in the specific morbidity of the population in the country. A similar situation exists in other countries that have been disintegrated by the former Yugoslavia. Experts agree that this is a significant reason for reducing the activity of diagnosing, recognizing, recording and recognizing these diseases in Western Balkan countries, with regard to changed opportunities in the area of legislation, undefined competences of health institutions for specific occupational health care, lack of contemporary guides, guidelines and the lack of and lack of doctrinal approach to these problems.

The current practice of verification of professional disease of Montenegro are carried out at the Institute for occupational health and radiological safety in Belgrade.

During 2017, health insurance fund has registered 847 injuries at work

6.3 Indicators of working conditions

The number of business entities in Montenegro in 2017, totaled 30 286, as compared to 2016., when there were 28 268, expressed in percent, an increase of 7.1%.

The number of employees

Year	The total number of employees
2010	161742
2011	163082
2012	166531
2013	171474
2014	173595
2015	175617
2016	177908
2017	182368

According to the available statistical data, in Montenegro live 619.200 inhabitants of which 306.000 are men and 313.200 women.

In the fourth quarter of 2015. in Montenegro, the active population (aged 15 years and more) it was 267.600 of whom 219.800, or 82.1% of employees and 47.800 or 17.9% of unemployed persons. Activity rate (15 +) for the fourth quarter of 2015., it was 53.5%, the employment rate was 43.9% and the unemployment rate is 17.9%.

Speaking to the regions, in the central region is employed the largest number of persons 118.500 while in Coastal and Northern 58.100 43.300.

By sectors of activity, employees working in the service industry has 164.000 or 74.6% (mostly in the wholesale and Retail Trade, repair 46.000 or 21.1%), then in non- agricultural occupations 38.300 or 17.4% and in agricultural activities 17.500 or 8%.

In terms of employment status, 171.800 or 78.1% are employed, 43.600 or 19.8% self- employed and around 4.500 or 2% of the family.

Of the total number of employees (219.800) 206.200, or 93.7% work with full-time, while 6.3% 13.800 or working hours shorter than full.

By type of contract , the largest number of employees has a written agreement with the employer or 164.700 95.9%, an oral agreement with an employer's or 2.5% 4.300, 2.800 or 1.6% of persons does not have a contract with the employer.

According to available data, the Fund for pension and disability insurance for a period from 01.01.2011. – 01.01.2016., the number of policyholders who are entitled to an invalidity pension, disability/partial in relation to cause of disability, is provided in table:

Cause of disability	Disability pensions	Partial disability pension
Injuries at work	65	2
Occupational disease	2	0
Disease	4863	14
Injuries at work and occupational disease	37	1
Occupational injury and diseases	0	0
Occupational diseases and disease	5	0

Unregistered records of injuries at work, occupational diseases, diseases related to work and the needs of work, cannot be tied to their lack of the specific population morbidity in the country. Similar to the situation in other countries, dating from the disintegration of the former Yugoslavia. Experts agree that the reason for the significant reduction of activities in the diagnostic, identifying, tracking and recognition of these diseases in the countries of the Western Balkans, and in connection with the changed conditions when it comes to legislation, undefined competency health institutions for specific health care employees, lack of modern guides, guidelines and lack of access to indoctrinate these issues.

6.4 Situational analysis and recommendations

In the coming period, Montenegro needs to reduce the informal economy and reduce the percentage of unemployment. Translation to employees a number of primarily young workers will be affected by and the rights which derive from it, especially in terms of safety and health at work, because the right to safety is only a person who has the status of an employee, and it is a person who works with the employer on the basis of the employment contract, including the feature that enables to operate, and the trainee, as well as any person in any legal basis does work with the employer. By reducing the requirements in terms of professional entities that are needed for development of risk assessments, and will increase the number of documents on risk assessment, as well as the number of employees who are covered by it, without losing its quality. Unfortunately, awareness is still not at the level that an employer can only carry out a risk assessment, even without an expert who is employed by them.

Static data is primarily in terms of recording workplace accidents and professional diseases must be standardized as soon as possible according to ESAW methodology, for reporting by EUROSTAT, and the formation of the Bureau of occupational health which would among other things done and by verifying that a software professional diseases is necessary.

7 GENERAL INFORMATION

Montenegro, country in southeastern Europe, which lies on the coast of the Adriatic Sea. It is bordered on the East and Northeast with Serbia, on the West and Northwest with Croatia and Bosnia and Herzegovina and in the South with Albania. To the Southwest is the Adriatic Sea from Italy. The main, and also the largest city is Podgorica, while Cetinje is the capital.

Montenegro is a member of the United Nations, the Organization for European safety and cooperation, the Council of Europe and trade union for the Mediterranean. It is also a candidate for membership in the European Union by 2010, and is a member of NATO.

Forerunners of today's Montenegro's medieval Principality of Duklja and Zeta. Montenegro during Turkish rule had some kind of autonomy and independence from Turkey was confirmed her at the Berlin Congress of 1878. From 1918. She was part of all three. In a referendum held on 21. may, 2006. the citizens of Montenegro voted for independence from the State Union Serbia and Montenegro, with a total of 55.54% of the vote. Independence is declared June 3. of 2006. On June 28. of 2006. Montenegro became 192. Member States of the United Nations, and on May 11. of 2007, 47. Member States of the Council of Europe.

7.1 Demographic data

Montenegro covers an area of 13.812 km², and on January 1. of 2017. has 622,387 inhabitants, of which 307,752 male and 314,635 female inhabitants.

January 1 st of 2017	Male	Female	Total
Age group			
0-4	19.319	17.909	37.228
5-9	19.873	18.198	38.071
10-14	19.842	18.161	38.003
15-19	21.243	19.853	41.096
20-24	21.180	19.757	40.937
25-29	21.034	19.951	40.985
30-34	23.711	22.643	46.354
35-39	22.015	22.084	44.099
40-44	20.343	21.367	41.710
45-49	19.711	20.206	39.917
50-54	20.687	21.176	41.863
55-59	20.787	21.441	42.228
60-64	19.593	20.514	40.107
65-69	14.788	17.563	32.351
70-74	8.009	11.079	19.088
75-79	7.990	11.180	19.170
80-84	4.747	7.182	11.929
85 and more	2.880	4.371	7.251
TOTAL	307.752	314.635	622.387

Newborns by gender and age of the mother

	2010	2011	2012	2013	2014	2015	2016
MONTENEGRO	7 418	7 215	7 459	7 475	7 529	7 386	7 569
Male	3 809	3 754	3 889	3 877	3 947	3 868	3 850
Female	3 609	3 461	3 570	3 598	3 582	3 518	3 719
Age of mother							
Under 15	5	5	-	3	3	2	3
15 – 19	358	303	279	248	230	217	195
15	6	11	5	7	8	10	4
16	37	24	17	11	23	13	14
17	59	59	48	34	38	33	29
18	86	65	77	78	63	61	52
19	170	144	132	118	98	100	96
20 – 24	1 694	1 567	1 528	1 437	1 409	1 244	1 211
20	217	217	184	179	183	178	138
21	280	270	229	233	224	191	187
22	364	298	303	276	261	219	234
23	364	368	366	374	332	284	302
24	469	414	446	375	409	372	350
25 – 29	2 545	2 485	2 534	2 519	2 487	2 390	2 405
25	506	454	489	480	424	410	411
26	508	476	487	484	454	452	451
27	539	535	536	520	501	489	529
28	494	557	529	522	536	537	477
29	498	463	493	513	572	502	537
30 – 34	1 821	1 865	2 002	2 050	2 191	2 103	2 217
30	450	477	486	533	535	494	592
31	403	397	424	420	498	459	475
32	382	382	405	382	420	433	444
33	301	344	370	382	375	401	393
34	285	265	317	333	363	316	313
35 – 39	825	823	860	944	981	960	1 078
40 – 44	157	155	194	202	208	201	227
45 – 49	10	10	13	18	18	23	14
50 and more	3	2	6	5	2	2	3
Unknown	-	-	43	49	233	244	216

Died by age and gender

		2010	2011	2012	2013	2014	2015	2016
MONTE NEGRO		5633	5847	5 922	5 917	6014	6329	6464
Male		2934	3090	2 993	3 080	3132	3209	3385
Female		2699	2757	2 929	2 837	2882	3120	3079
AGE								
0 godina	Male	25	21	17	21	25	5	11
	Female	25	11	16	12	12	11	15
1 godina	Male	2	4	2	1	2	1	1
	Female	2	1	2	1	4	1	-
2 godine	Male	-	1	2	-	-	3	1
	Female	-	1	2	1	-	-	-
3 godine	Male	-	-	1	-	-	-	-
	Female	1	-	-	1	-	1	1
4 godine	Male	1	2	-	-	-	-	-
	Female	-	-	-	1	-	1	-
5—9	Male	1	2	1	3	0	2	2
	Female	4	2	1	-	1	0	4
10—14	Male	2	6	4	2	4	5	3
	Female	1	4	1	3	3	4	2
15—19	Male	9	7	9	8	7	6	6
	Female	1	3	4	8	5	2	6
20—24	Male	13	11	24	19	12	22	13
	Female	5	6	9	5	8	3	2
25—29	Male	22	19	13	21	22	13	20
	Female	7	6	8	9	9	10	7
30—34	Male	27	19	23	20	29	20	20
	Female	9	14	12	7	13	8	9
35—39	Male	34	43	32	29	27	28	30
	Female	12	18	18	17	17	11	16
40—44	Male	46	54	50	47	39	28	39
	Female	23	24	29	25	29	33	28
45—49	Male	98	91	71	80	79	79	71
	Female	58	51	43	57	45	48	34
50—54	Male	170	163	146	156	167	132	150
	Female	96	79	92	69	84	82	63
55—59	Male	269	272	224	240	234	264	245
	Female	118	128	136	110	116	147	130

60–64	Male	289	328	306	317	337	364	351
	Female	149	155	189	177	157	185	183
65–69	Male	276	306	269	304	316	356	444
	Female	208	188	204	183	194	242	278
70–74	Male	470	434	419	456	423	396	362
	Female	389	399	376	391	357	289	303
75–79	Male	469	538	558	521	525	546	581
	Female	517	500	523	546	517	560	564
80–84	Male	412	464	483	457	476	461	490
	Female	553	591	624	539	583	671	630
85 and more	Male	299	305	339	378	408	478	545
	Female	521	576	640	675	728	811	804
Unknown	Male	-	-	-	-	-	-	-
	Female	-	-	-	-	-	-	-

Basic demographic indicatorsi

	2010	2011	2012	2013	2014	2015	2016
Rates							
birth rate	12,0	11,6	12,0	12,0	12,1	11,9	12,2
mortality	9,1	9,4	9,5	9,5	9,7	10,2	10,4
natural increase	2,9	2,2	2,5	2,5	2,4	1,7	1,8
nupcijaliteta	5,9	5,7	5,3	6,2	5,7*	6,2	5,1
divorcijaliteta	0,8	0,8	0,8	0,8	0,9	0,9	1,1
Rate of deaths of infants	6,7	4,4	4,4	4,4	4,9	2,2	3,4
The mortality rate of children under the age of 5 years	7,5	5,7	5,6	5,1	5,7	3,1	3,8
Vital index 100 live births to deaths	131,7	123,4	126,0	126,3	125,2	116,7	117,1
Rate maskulinitet							
live births	105,5	108,5	108,9	107,8	110,2	109,9	103,5
death records	108,7	112,1	102,2	108,6	106,7	102,8	109,9
deaths of infants	100,0	190,9	106,3	175,0	208,3	133,3	73,3
Life expectancy (FinePix series 2007 year)							
all	76,1	76,1	76,4	76,6	76,4	76,5	76,6
male	73,6	73,4	74,3	74,1	73,9	74,7	74,2
female	78,5	78,9	78,4	79	78,9	78,6	79,0
Total fertility rate	1,66	1,65	1,72	1,73	1,75	1,7	1,8

7.2. ECONOMIC DATAI

National accounts

Sistem nacionalnih računa je skup međusobno integrisanih makroekonomskih računa, bilansa i tabela kao i klasifikacija, koji predstavlja statistički okvir za praćenje privrednih kretanja svake zemlje.

Međunarodno propisana metodologija za obračun nacionalnih računa je Sistem nacionalnih računa 2008 (SNA 2008) koja pruža detaljan teorijski okvir, dok je za zemlje Evropske unije propisana metodologija Evropski sistem nacionalnih računa (ESA 2010) koja je u potpunosti konzistentna sa SNA 2008 i prilagođena evropskom okruženju i praksi. Zakonska obaveza svake države članice EU je da poštuje ESA 2010 u svojoj statističkoj praksi.

ESA 2010 provides a framework for the development of two types of accounts:

- Accounts for institutional sectors;
- Input output frames and accounts by activity.

Institutional units are economic entities that are entitled to own goods or assets, that is, borrowing money and include in economic activities and transactions with other units.

Institutional sectors are groups of accounts that have similar economic activity. If an institutional unit classified within a single sector, according to the same methodology, it is impossible to classify in any other sector.

The system recognizes the following types of institutional sector:

Non-financial corporations;

- Financial corporations;
- States;
- Households;
- Non-profit institutions serving households (NPISH);
- Overseas.

National accounts are made on an annual and quarterly basis.

The calculation is done in the current (market) prices and at constant prices for the purpose of determining the rates of real growth, which ignores the impact of price.

In May 2016, was signed an agreement on cooperation in the field of statistics of national accounts sectors for the General State and with it related statistics between the Central Bureau of statistics, the Central Bank of Montenegro and the Ministry of finance.

MONSTAT calculates gross domestic product year-on-year for the economic territory of Montenegro, for production and consumption method.

GDP per production method is calculated as a sum of added values of all resident institutional units, ie as the difference between fuel consumption and intermediate consumption.

The advantage of this method is the ability to observe the contributions of individual activities the overall economic growth of the country.

GDP per consumption method is calculated as the sum of consumption, households, government spending, investment, changes in inventory and the balance of exports and imports of goods and services.

The GDP calculation per production method was done at constant and current prices. On the basis of the available data, the calculation was done at constant prices using the double deflation method for Agriculture activity and for all other activities, the calculation was carried out using the single extrapolation method, the corresponding indicators ie the physical production indexes.

	2010	2011	2012	2013	2014	2015	2016
1. Gross domestic product at current prices, mln. EUR	3.125	3.265	3.181	3.362	3.458	3.655	3.954
2. Population, thou.	619,4	620,1	620,6	621,2	621,8	622,2	622,3
3. Gross domestic product per capita, EUR	5.045	5.265	5.126	5.412	5.561	5.873	6.354
4. Gross domestic product at constant prices (prices in the previous year), mill. EUR	3.076	3.226	3.176	3.294	3.422	3.575	3.762
5. Real GDP growth (%)	2,7	3,2	-2,7	3,5	1,8	3,4	2,9
6. Nominal GDP growth (%)	4,4	4,5	-2,6	5,7	2,8	4,8	8,2
7. Deflator (%)	1,6	1,2	0,2	2,1	1,1	1,4	5,1

Gross national income (GNI) is equal to the sum of the GDP and the balance of primary incomes (from labor and capital) from abroad. Unlike GDP, which is a measure of production, GNI is a measure of income. In the system of accounts, this aggregate represents a balancing entry accounts primary income total deployment economy

7.3. HEALTH STATISTICS

Providing accessible and comprehensive health care is a priority goal of health policy in Montenegro to 2020., starting from the position that the health of the population of the general social interest and the most important resource for the development, which begins the process of commitment to health in accordance with global objectives in this area. Health policy strategy set out in this document is based on raising the quality of health of the population, with the adaptation and improvement of operation of the health system in accordance with the financial possibilities. Health policy, like the General, defined objectives: extension of life expectancy, improve quality of life in relation to health, the reduction of differences in health, insurance of financial risks.

The general principle that the Constitution guarantees the right to health care and the possibility of achieving the highest possible level of health, in accordance with legal provisions. In the provision of health care, it is necessary to respect the principle of focus on the patient and identify the health needs, as well as directing action towards the priorities of protecting fundamental rights of patients. The General principles apply to both system and every citizen who, by law, required to take care of your health, and should not compromise the health of others and everyone has equal opportunity to better health.

Due to the prolonged time of transition in the region of the Western Balkans, who is walking by, and Montenegro, and to the adverse socio-economic opportunities, many social factors influence the functioning of the health system and the health of of the population. Health status of the population is monitored through regular health-statistical reporting according to law, and information is reported both on the national and international level. How trends point to the rise in non-communicable chronic disease burden, risk factors associated with 12 these diseases, but also cross-border threats related to infectious diseases, it is these indicators of health were given special attention noncommunicable diseases are the leading causes of contracting the disease, disability and premature (before 65 years old) the dying inhabitants of Montenegro. Ischemic heart disease, cerebrovascular diseases, lung cancer, affective disorder (unipolar depression) and diabetes mellitus (diabetes) are chronic noncommunicable diseases that are responsible for almost two-thirds of the total disease burden society.

According to available data, about dying in Montenegro 2008. - 2012., Chronic noncommunicable diseases participate in total causes of death with even 80% of which diseases, circulatory system, and tumors with over 60%. Of the total number of deaths by nearly half (44.3%) were caused by diseases of the heart and blood vessels and by almost one-quarter (23.4%) malignant tumors. In more than 10% of cases the cause of death was unknown (symptoms, signs and abnormal clinical and laboratory findings).

According to the data of hospital treatment in 2013., circulation system diseases are in first place in the structure of hospital morbidity according to releases (15.2%), while in another place as a cause of hospitalization was treatment

of tumors (11.8%). Diseases of the respiratory system, were in third place (11.4%), and diseases of the digestive system with 10.4% were in fourth place. Rates of hospital admission in 2013. year amounted to 134 per thousand inhabitants.

In the structure of outhospital morbidity, in most cases registered were acute diseases and conditions, primarily diseases of breathing system disease Group (31.3%), while for example, diseases of the circulatory system as chronic diseases was in third place (9.5%). According to the data of being affected by chronic non-communicable diseases, and on the basis of a report from the information system of primary health care, during 2014. circulation system diseases were represented by about 30% of the adult population in Montenegro (estimated prevalence). The largest share of the individual diseases in this group belongs to the primary hypertension (64%), with the participation of around 25% in men, i.e. 38% among women.

From 2013., in Montenegro have established registers for Chronic noncommunicable diseases: malignant neoplasms, diabetes, acute coronary syndrome and cerebrovascular disease. More complete data from the registers for the total number of sufferers of the disease are expected in the coming period, as well as the indicators that will be based on registers to generate.

According to data available from the registry of malignant neoplasms, the total number of new cases of cancer in the level of Montenegro in 2013. was 1990. In relation to specific diagnosis and gender structure of the diseased, women are most often obolijevali of breast cancer (33.4%), colorectal cancer (9.20%) and lung cancer (8.88%), while among men the most frequent were lung cancer (22.19%), colorectal Carcinoma (12.58%) and malignant skin tumor (10.22%).

Implementation of the programme for the early detection of colorectal cancer in Montenegro started on June 1. of 2013. Target population were citizens from 14 municipalities in the age group 60-64 years. On June 1. of 2014. target population is extended to residents from all municipalities with the extension of coverage to the age group 59-64 years

The use of tobacco and tobacco products, harmful use of alcohol, unhealthy/improper nutrition and physical inactivity are common risk factors for non-communicable diseases and most of the preventabilnih are related to behavior. This risky behaviour leads to four key metabolic (physiological) changes: increase in arterial blood pressure, increases in glucose and cholesterol in the blood and increase in body weight that is obesity. The above risk factors are the main four groups of non-communicable diseases that are extracted by the massive rate, consequential disability and death.

Montenegro has so far conducted two studies on the health of the population and health care (2008, 2012.) on a representative sample of the population and the resulting useful relevant information related to risk factors: smoking, drinking alcohol, physical activity, nutrition.

In 2008. of 32.7% of the adult population (20 + years) had hypertension or potential hypertension, and body mass index 55.1% of adults had excess body mass. Only 11.5% of adult practiced physical activity, more than three times a week. Prevalence of smoking (regular or occasional) in 2008. was 32.7% among adults, while in 2012. amounted to 31%. Alcohol is consumed 25.1% of the adult population regularly or occasionally in 2008. or significantly more (32%) in 2012.

Montenegro went through "epidemiological transition", and a higher burden of disease for citizens, for decades, are instead of noncommunicable diseases. However, there are still challenges that are related to the improvement of health of the population in the area of infectious diseases. In addition to the daily needs for surveillance, prevention, rapid detection, treatment, control and suppression of common diseases of infectious etiology, there are a variety of contemporary "threats", such as newly diagnosed pathogens and diseases which they cause as well as the diseases become current again due to changes in the environment. Increasing significance and cooperation with other countries, primarily those in the environment, but also other countries of the world because of the increased number of passengers in international traffic, and increased risk of importation diseases and outbreak of any epidemic.

Special issue makes antimicrobial resistance that threatens to jeopardise established control of infectious diseases.

Based on records of contagious diseases in 2014. in Montenegro reported 8,974 people affected persons of communicable diseases subject to mandatory reporting (with no proven cases of influenza (flu), or-diseases which resemble flu and ARI-acute respiratory infections. The incidence of 1447,4/100,000 for 9.7% higher than last year's values.

During 2014. registered the three outcomes of the infectious diseases that must be reported, with a mortality of 0.48 per 100,000 (excluding influenza which in this report is processed. Fatalities were registered in two cases of hemorrhagic fever with renal syndrome and one case of congenital syphilis. 14

Viewed by groups of infectious diseases, the number of notified cases falling ill in 2014. is the highest in the Group of respiratory diseases (flu), that make up 77.3 percent of the total number of reported cases of infectious disease, making this group retained first place as in the previous year or the last six years. Intestinal infectious diseases are in second place with participation from 11.6% in the total number of people affected, and in third place are parasitic diseases with 9.2 percent. Other groups of infectious diseases (antropozoonoses, sex, vector, germowner and other diseases) are present with a very low down payment (all together account for 1.9 percent of the total number of patients suffering from infectious diseases register). This order of frequency of individual groups of infectious diseases is a six-year period of the observed features.

In 2014. in Montenegro are registered 20 new HIV/AIDS cases, and the incidence of newly-diagnosed infections in 2014. is 3:22/100,000 population. At the time of diagnosis of HIV infection, 7 new registered person was already in the stage of AIDS (incidence of diseased 1.13 per 100,000), while 13 people were registered at the stage of asymptomatic HIV infections (incidence is 2.09 per 100,000).

This year they registered two deaths result from AIDS. (Mortality costs 0.32/100,000 population).

In recent years the rate in Montenegro newly registered cases of tuberculosis is being held at the level of the low notifikacione rate for the EU region, i.e. costs less than 20/100000 inhabitants. For 2014. the value of this year's rate was 18.2 per 100,000, while the percentage of multi-drug resistant tuberculosis in relation to the total number of people affected from TB 3.5. The death rate from tuberculosis is 0.32/100,000 population.

Organization of health care

According to the law, the State is the founder of the largest number of health institutions that provide health care for the population. Health care is provided in health institutions that make up the network of public health institutions and facilities in private ownership.

Network of health institutions is organized in a way that citizens provide health care according to the needs and capabilities of the health care system, and in accordance with the principles of solidarity, accessibility and equality in achieving health care.

Health care is provided at three levels.

The first level of primary health care which should provide 80-85% need for healthcare. Holder of a primary care doctor is selected in the infirmary, or teams of selected doctors.

The second level, secondary level health care, to provide through specialized clinics and hospital wards, as well as tertiary level health care by developing subspecialists.

Primary health care is a priority in the development of the health system, and her promotion of healthy lifestyles and preventive health care. Organizational, medical center is a facility that is selected through the infirmary doctor, or teams of selected medical doctors and centers and units to support the doctors the holder of primary health care.

In 2008. of public health are reformed and changed the Organization and content of the work. Organizational, Medical Center has three main sections:

- **infirmary** the selected doctor, or teams of selected doctor (the selected doctor pediatrician, selected a doctor for adults and the selected doctor gynecologist),
- **centre for the support of the doctors** which are organized at the local and regional level to: lung disease and TB, diagnosis, mental health, children with special needs, prevention, etc., and
- units to: patronage, physical therapy, and primary-level medical transportation.

Health care at the secondary and tertiary level is achieved in the General and special hospitals and Clinical center of Montenegro, through outpatient specialist-mentoring and consultative health care, as well as through hospital treatment at departments and through daily treatment patients (day hospital).

Resources in health care

In accordance with the applicable law, the State has established health institutions: 18 health centers, seven general hospitals, three special hospitals, clinical center of Montenegro, Institute of public health, Bureau of emergency medical services, Department of blood transfusion, and Pharmacy Black Up to "Montefarm". Listed establishments provide health safety levels (primary, secondary and tertiary) in relation to the activity for which it was founded.

For the implementation of health policy in the part of the health insurance Fund is responsible for health insurance, and for the implementation of drug policies the State has established an Agency for drugs and medical devices (CALIMS).

At the end of 2013, public institutions of Montenegro worked 7228 workers of which is 5550 (76.8%), health care professionals and associates and 1678 (23.2%) of employed non-medical professions. The relationship of medical and non-medical staff employed in all health institutions in the public sector was 3:31:1 (or 100 health workers and associates were 30.2 non-medicals).

